State Maritime Emergencies (Non-search and Rescue) Sub-Plan Edition 3



VICTORIA
State Government

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Acknowledgement of Country

The Victorian Government acknowledges Aboriginal and Torres Strait Islander people as the Traditional Owners and custodians of the land and acknowledge that the land and sea is of spiritual, cultural and economic importance to Aboriginal people.

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Introduction

Complex maritime emergencies (non-search and rescue) are a significant threat to the state's marine environment. The impacts of a major maritime incident could have catastrophic consequences to life (including aquatic life), maritime operations, infrastructure, the economy and the environment.

The emergency management arrangements outlined in this plan are crucial to ensure that government, industry and community confidence is maintained. Understanding the state's capability is essential for preparedness, planning, response and recovery for a maritime emergency.

No single agency has the capacity or resources (including skilled staff) to respond to and manage a complex maritime emergency; this will require resource allocation from multiple agencies.

This subplan exists to ensure collaboration, co-operation and resource sharing is captured and agreed to by the stakeholders, and that a response to a complex maritime emergency will be a shared responsibility between the agencies.

The Maritime Emergencies (Non-Search and Rescue (NSR)) Sub-Plan of the State Emergency Management Plan (SEMP) is developed in accordance with the *Emergency Management Act 2013*. The Sub-Plan also serves the purposes of being the *Victorian Marine Pollution Contingency Plan* in accordance with the *Marine (Drug, Alcohol and Pollution Control) Act 1988* (the Act).

This document is in two parts.

- Part A is the *Maritime Emergencies (NSR) Sub-Plan, which*:
  - provides an overview of the high-level arrangements in place for managing maritime emergencies in Victoria
  - describes the integrated approach and shared responsibility between state and Commonwealth governments (and their departments), agencies, businesses and communities
  - refers to national agreements, plans and documents, including the National Plan for Maritime Environmental Emergencies (National Plan).
- Part B is the Maritime Emergencies (NSR) Operational Plan and contains the operational details for preparing and planning for, responding to, and recovering from maritime emergencies (Part B is not a publicly available document).

The Sub-Plan applies to maritime emergencies (NSR) including maritime-sourced marine pollution which results or may result in a prohibited discharge of oil, oily mixtures, undesirable or hazardous and noxious substances (HNS)[1] into state waters.

[1] Hazardous and noxious substances (HNS) refers to substances defined under the International Protocol on Preparedness, Response and Co-operation to Pollution Incidents by Hazardous and Noxious Substances, 2000. It includes but is not limited to hazardous materials as defined in the State Emergency Management Plan.

This edition of the *Victorian Marine Pollution Contingency Plan* (Sub-Plan Part A) is developed, coordinated and administered by the Secretary, Department of Transport and Planning (DTP) in accordance with Section 71A of the Act.

This edition has been prepared by DTP, in collaboration with control agencies and stakeholders that have Maritime Emergency (NSR) responsibilities.

1.1 Purpose

The purpose of this Sub-Plan is to:

- provide the *Victorian Marine Pollution Contingency Plan* in accordance with section 71B of the *Marine (Drug, Alcohol and Pollution Control) Act 1988* to ensure there is adequate planning and preparation for maritime-sourced oil pollution incidents (including by providing equipment and training personnel)
- give effect to Victoria's obligations under the *National Plan for Maritime Environmental Emergencies* and Intergovernmental Agreements
- provide the *State Emergency Management Plan Maritime Emergencies (NSR) Sub-Plan* in accordance with the *Emergency Management Act 2013*
- provide strategic guidance for the effective management of maritime emergencies specifically addressing maritime-sourced oil pollution (including oil and hazardous substances) and/or maritime casualty (NSR).

1.2 Scope

The scope of this Sub-Plan is maritime emergencies that are:

- maritime-sourced non-hazardous marine pollution by oil, oily mixtures, and undesirable substances
- maritime-sourced marine pollution by hazardous substances
- maritime casualties (vessels – non search and rescue)
- wildlife affected by maritime-sourced oil pollution.

Geographically, this Sub-Plan applies to maritime emergencies (NSR) in Victoria's embayment's (enclosed waters) and state coastal waters up to 3 nautical miles (NM). It does not include inland waters.

This sub-plan does not cover the following hazards [Indicates responsible agency]:

- pollution in Commonwealth waters from petroleum titleholders or offshore petroleum facilities [National Offshore Petroleum Safety and Environmental Management Authority (NOPSEMA)]
- cetacean entanglements, strandings or vessel strikes [Department of Energy, Environment and Climate Action (DEECA)]
- blue-green algae [DEECA][2]
- non-hazardous pollution of inland waters [DEECA][3]
- maritime search and rescue and evacuation [Victoria Police (VICPOL)]
- ship-board fires [Country Fire Authority (CFA) or Fire Rescue Victoria (FRV)]
- public health [Department of Health (DH)]
- radioactive materials, biological releases [DH]
- military ships/vessels [Australian Defence Force (ADF)].

[2] Excluding marine algal blooms (SEMP Critical Task Table 3.1)

[3] In the event that pollution from an inland waterway enters the marine environment, DTP may provide support to the control agency.

The direct management of these hazards is not within scope of this Sub-Plan, however the control and coordination principles may be applied, if the hazard were to occur concurrently, with hazards that are under the scope of this Sub-Plan.

1.3 Objective

The **objectives** of the subplan are to:

- ensure an integrated and coordinated approach to Victoria's management of maritime emergencies (NSR)
- reduce the impact and consequences of maritime emergencies (NSR) on communities, infrastructure and services, and the environment.

1.4 Authorising environment

This Sub-Plan has been prepared by DTP, on behalf of the Emergency Management Commissioner (EMC), and in accordance with:

- *Marine (Drug, Alcohol and Pollution Control) Act 1988* (VIC)
- *Marine Safety Act 2010* (VIC)
- Part 6A of the *Emergency Management Act 2013* (VIC)
- State Emergency Management Plan (VIC)
- National Plan for Maritime Environmental Emergencies 2020 Edition (Australian Maritime Safety Authority (AMSA))
- Intergovernmental Agreement on the National Plan to Combat Pollution of the Sea by Oil and other Noxious and Hazardous Substances (2002) (AMSA)
- Intergovernmental Agreement on the National Maritime Emergency Response Arrangement (2008) (AMSA)

1.5 Activation of the Sub-Plan

The arrangements in this plan apply on a continuing basis and do not require activation.

1.6 Audience

The audience for this Sub-Plan is Victorian Government departments, port management bodies and agencies within the emergency management sector who have responsibilities under the Sub-Plan, as well as Commonwealth government agencies, supporting businesses, contractors, local government authorities and the maritime industry.

1.7 Linkages

This Sub-Plan reflects legislation, the arrangements in the SEMP, the strategic direction for emergency management in Victoria, accepted state practice for managing emergencies, and the related national and international protocols, conventions and arrangements as listed in Appendix 1.

This subplan should be read in conjunction with:

- the *National Plan for Maritime Environmental Emergencies* for incidents involving marine pollution including hazardous and noxious substances and maritime casualties
- the Victorian Marine Search and Rescue Arrangements
- the Operational Plan (PART B)

1.8 Review

The original Edition of the Sub-Plan was authorised and published in 2016 by the former Department of Economic Development, Jobs, Transport and Resources (DEDJTR).

Edition 2 and 3 (this edition) was reviewed and updated by DTP (under Part 6A of the *Emergency Management Act* 2013) and in consultation with maritime emergencies stakeholders and control agencies.

Edition 3 is current at the time of publication and remains in effect until modified, superseded or withdrawn by the Secretary, DTP. The Sub-Plan will be reviewed every three years or as agreed by the Secretary, DTP.

The emergency context

2.1 What is a maritime emergency?

To delineate the roles and responsibilities under this Sub-Plan, maritime emergencies are divided into four categories:

- maritime casualty
- non-hazardous oil spills from maritime sources (vessels, platforms and offshore facilities)
- hazardous material spills[4]
- wildlife affected by maritime-sourced oil pollution events.

The possibility of a maritime emergency affecting Victoria arises from oil and gas production, commercial shipping, domestic and recreational vessel activity, and naturally occurring events.

The consequences of major maritime emergencies can include loss of marine habitats and wildlife, economic losses due to impacts on commercial shipping, fisheries, aquaculture and tourism, and social impacts due to the loss of amenity or access to coastal areas.

2.2 Risk profiles

2.2.1 Oil and gas industry

Offshore petroleum production occurs in Commonwealth waters off Victoria in two major sedimentary basins: the Gippsland and Otway basins.

The Gippsland Basin covers an area of 46,000 km^2 and has both onshore and offshore components (over 60 per cent is located offshore). For more than thirty years, the Gippsland Basin has produced natural gas, crude oil and condensate and is a mature petroleum province.

The Otway Basin also has both onshore and offshore components and produces natural gas and condensate. It covers approximately 155,000 km^2, with around 80 per cent of the basin being located offshore.

The National Offshore Petroleum Safety and Environmental Management Authority (NOPSEMA) is the regulator for health and safety, structural (well) integrity and environmental management for all offshore energy operations and greenhouse gas storage activities in Commonwealth waters.

NOPSEMA also regulates the health and safety and structural integrity of petroleum and greenhouse gas storage activities in the coastal waters of Victoria following conferral of state powers and functions to NOPSEMA.

The Department of Energy, Environment and Climate Action (DEECA) is the regulator for environmental management for offshore energy operations in Victorian coastal waters.

Natural gas, crude oil and other production fluids are moved by pipeline, vessel and road transport for further processing and/or to service consumers' needs both locally in Victoria and nationally across Australia.

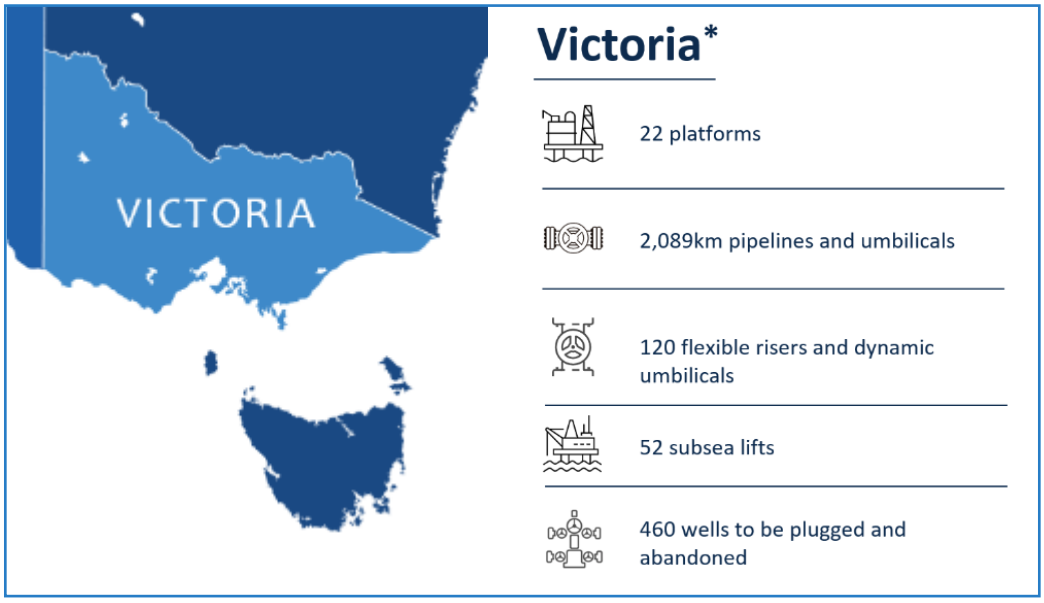
[4] The definition of hazardous spills relating to this subplan, are spills of any contaminants or materials that are harmful to human health as outlined in the SEMP. Hazardous and Noxious Substance spills (HNS) as defined by the National Plan included 'hazardous material spills' and 'non-hazardous' spills in this Sub-Plan.

There are a significant number of manned and unmanned platforms and installations in Commonwealth waters in Bass Strait, as well as an extensive network of underwater pipelines, transporting natural gas, crude oil and other production fluids ashore.

There is also a substantial amount of infrastructure and wells in Bass Strait that require decommissioning. Decommissioning involves the removal of, or satisfactorily dealing with, infrastructure from the offshore area that was previously used to support oil and gas operations.

The figure below shows the scale of decommissioning that is required in Victoria. The decommissioning of wells adds another layer of risk of oil spills occurring if the capping of wells should fail.

Figure 1: The scale of today's decommissioning challenge[5]



2.2.2 Risk of maritime casualty

Maritime casualty risks arise when a vessel is unable to:

- independently maintain a safe distance from surrounding navigational hazards (i.e. coastline, outlying islands and reefs, other vessels, offshore structures and channel boundaries)
- effectively maintain the integrity of its cargo (through fire, explosion or water ingress) and to effectively contain its cargo (including any fuel or oil) carried on board.

Casualty risk may be categorised as:

- breakdown – failure of equipment essential to the independent navigation of the vessel or the maintenance of integrity of its cargo, rendering it in need of external assistance
- fire or explosion – damage to equipment essential to the independent navigation of the vessel or the maintenance of integrity of its cargo, rendering it in need of external assistance
- collision – two vessels coming together inadvertently causing significant damage to either or both
- stranding/grounding – a vessel inadvertently contacting the seabed and being unable to independently free itself
- allision – a vessel striking a fixed object

[5] Decommissioning | NOPSEMA

- loss of stability of vessel - a vessel floundering due to angle of loll
- cyber-attack – shipping-related operational, safety or security failure as a consequence of information or systems being corrupted, lost or compromised, leading to a maritime casualty.

The risk of maritime casualty is greatest due to vessel disablement, groundings and collisions. The consequences of a ship maritime casualty may include loss of life, the ship, its cargo or fuel, and may potentially cause marine pollution.

Shipping activity

Australia relies heavily on commercial shipping activities, both nationally and internationally for the importing and exporting of goods. Victoria's port infrastructure plays a vital role in national, state and local supply chains of critical goods and services to all sectors.

In 2020–21, the value of Australia's maritime exports was $354.8 billion, with 516.1 million tonnes of goods being exported from Australia by sea. Australia also imported 97.1 million tonnes of goods, worth $246.6 billion by sea, in the same period. Victoria receives on average 4,000 port calls from cargo ships each year, loading and discharging more than 56 million tonnes of freight[6].

The density (and therefore risk) of ship traffic in Victoria is greatest at the commercial ports (profiled in Appendix 2). Other areas of concentrated vessel activity include the approaches to Port Phillip and the waters off Wilsons Promontory. Table 1 is a summary of notable maritime incidents in Victoria over recent years.

Table 1. Notable maritime incidents in Victoria[7]

Year	Vessel	Incident Type	Incident details	Location	Outcome
2017	Norwegian Star	Casualty	Loss of propulsion on passenger cruise ship Norwegian Star	Bass Strait, 22 NM SW of Cape Liptrap	Tugs were deployed and towed the ship back to Melbourne
2018	MV Tomar /MV CPO Jacksonville	Near miss (collision)	Navigational occurrence	South Channel, Port Phillip	The ships passed each other about 130 m apart
2020	MV Florida Highway	Breakaway from berth	Several lines parted from wharf in wind, ship rotated from berth	Webb Dock	Anchors dropped, tug assistance to re-berth
Jan 2023	Lady Cutler	Collision	Passenger vessels bow came into heavy contact with wharf	Yanonung Quay, Docklands	19 Passengers minor injuries, damage to vessel bow and wharf
Sept 2023	Kariyushi Leader	Casualty	Loss of steering. Two Emergency Towage Vessels (ETV) unsuccessful providing assist.	Bass Strait, drifting towards Wilsons Prom	Helicopter of parts to vessel
Oct 2023	PV Corsair	Collision	Search and Rescue (SAR), vessel broke up after collision with rocks	Point Lonsdale	Multi agency water and shoreline clean-up response
2024	Bougainville	Casualty	Loss of propellor	off Seal Rocks Phillip Island	Tug to safe anchorage

The Australian Maritime Safety Authority (AMSA) has a national incident reporting system for marine incidents. Since 2018 there has been an increasing annual trend of incident reporting to

[6] Australian sea freight 2020-21, BITRE 2023

[7] Chief Investigator Transport Safety – Marine incident reports

AMSA. However, there still appears to be an under reporting of incidents of particular vessel types, namely Domestic Commercial Vessel (DCV) fishing vessels and DCV hire & drive vessels.

Domestic Commercial Vessel marine incidents

There are approximately 22,000 active DCVs operating in Australia. Around 8.6 per cent of the vessels are located and operate from Victoria.

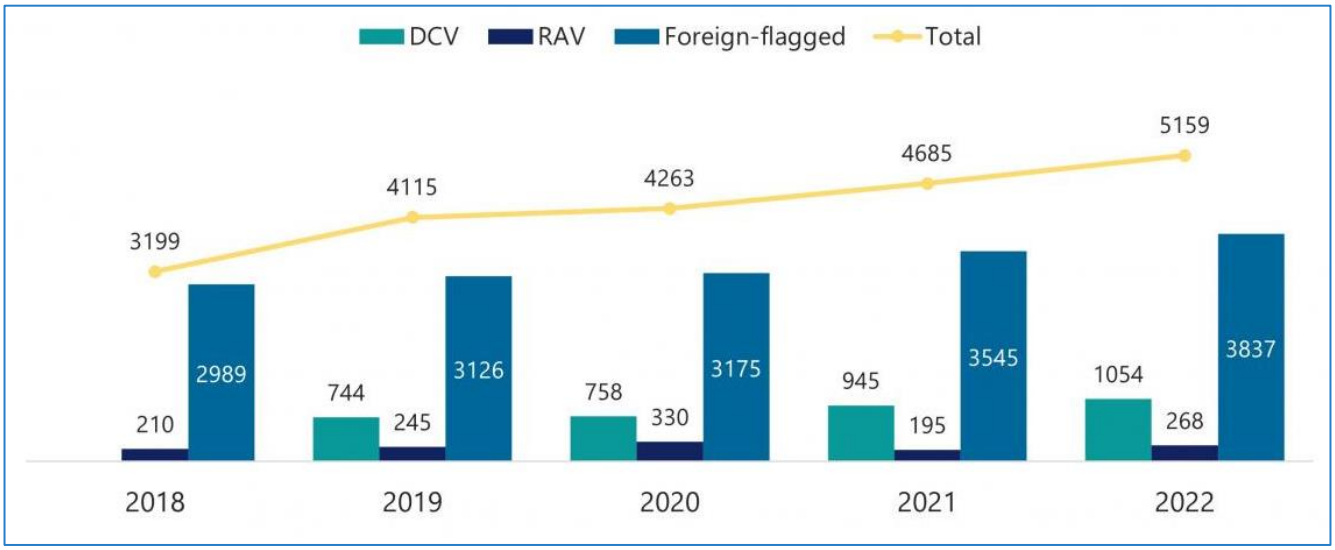
In 2022 AMSA received a total of 1,054 reports of marine incidents involving DCVs nationally, which is an increase of 11.5 per cent from 2021 and represents a 41.5 per cent increase in the annual number of incident reports from DCVs since 2019. Around 63 of the reported incidents occurred in Victoria[8].

Regulated Australian Vessels and Foreign Flagged vessel marine incidents

In 2022 AMSA received a total of 4,105 reports of marine incidents from Regulated Australian Vessels (RAV) and Foreign Flagged (FF) vessels. FF bulk carrier ships are highly represented in marine incident reports, see Figure 2.

The statistics provided in figure 2 show an increase in incidents involving FF and RAVs. Data shows an overall increasing frequency of failure of ship systems and equipment since 2020, which is reflected in the number of near miss incidents in Victoria, and anecdotal information from stakeholders. The reasons for the increase in mechanical failures is unclear.

Figure 2. Reported marine incidents, all vessels, by year (2018 – 2022)[9]



Recreational vessel activity

Victoria now has over 200,000 registered recreational vessels. The majority of vessels are highly mobile (trailable) and 96 per cent are vessels less than eight metres.

[8] https://www.amsa.gov.au/marine-incident-annual-report-2022/domestic-commercial-vessels

[9] Summary of marine incidents in 2022 | Australian Maritime Safety Authority (amsa.gov.au)

Recreational vessels also pose a risk of maritime casualty. Although the consequences may not be as severe as a ship casualty, they occur more frequently and can have similar consequences of loss of life, the vessel and impacts of a fuel spill on a local scale.

Victoria has 14 local ports with eight local port managers (Appendix 3). Local ports provide services to the oil and gas industry, commercial fishing industry, charter boats, and recreational fishing and boating interests. The ports are key recreational and tourist assets and contribute significantly to local and state economies. Recreational boating is supported by Safe Transport Victoria and Better Boating Victoria.

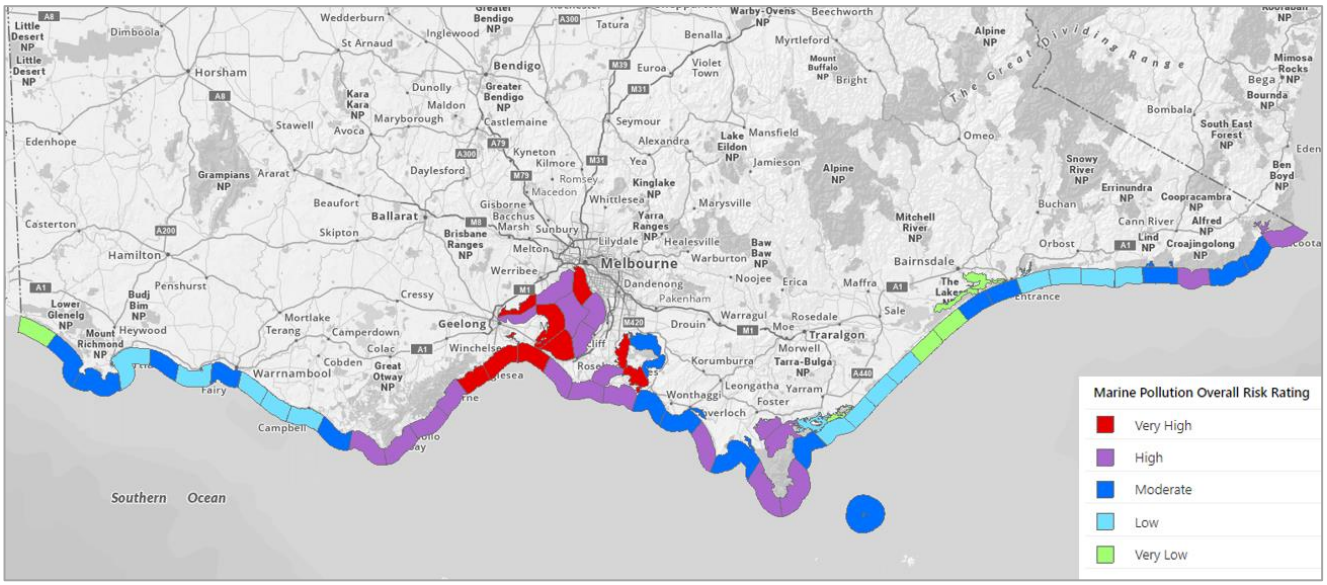
The number of reported recreational vessel incidents has been relatively constant over the past decade. The number of incidents for the 2022/23 financial year was 1,171[10].

2.2.3 Risk of marine oil pollution

Marine oil pollution spills may occur as consequence of a maritime casualty, bunkering operations, oil and gas production activities (including well decommissioning), ship to ship transfers, and illegal dumping from ships. Natural hydrocarbon seepage from offshore basins is possible but is considered rare in Australia.

A comprehensive marine pollution risk assessment conducted in 2011 found the highest risk in the areas of Port Phillip and Western Port bays due to the amount of shipping activity and the proximity of sensitive marine environments (Figure 3).

Figure 3. Distribution of marine pollution risk on the Victorian coastline from a 2011 assessment is still relevant today.

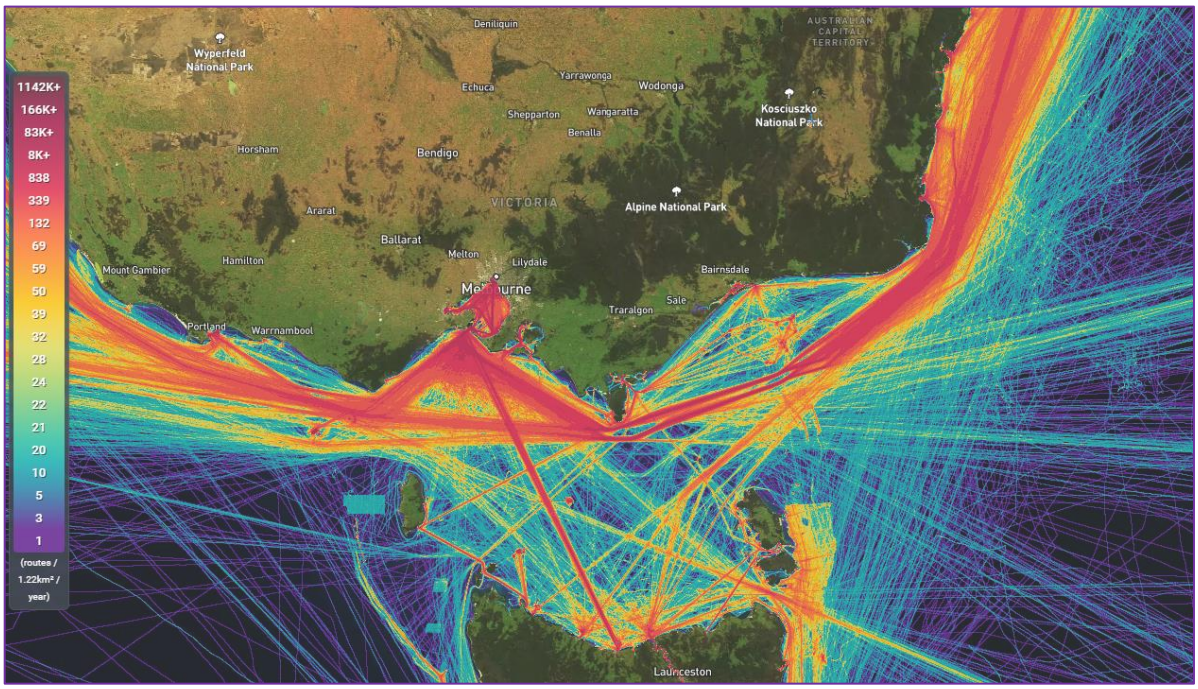


The *Port of Melbourne: Historical Trade Trends Report 2022*[11] shows that total imports and exports from the port have steadily increased over the past decade and indicates that Port Phillip and Western Port bays remain the highest risk areas for marine pollution incidents (illustrated in Figure 4).

[10] ST Vic Annual Report 2022-23

[11] https://www.portofmelbourne.com/about-us/trade-statistics/historical-trade-data/

Figure 4. Vessel traffic density map for the Victorian coast and offshore 2022



Lowest density purple, grading to highest density in red - 2022. (Source: Marine Traffic www.marinetraffic.com)

There has also been an increase in the size of ships and the volumes and type of cargo and fuel that they carry.

Table 2 shows the history of significant oil spills in Australia causing environmental or economic losses over the last 50 years.

The consequences of a major marine pollution event include devastating impacts on marine and shore habitats, amenities, cultural heritage areas, vulnerable and threatened species. Consequences would be compounded by the potential significant economic impact that would be caused by disruptions to shipping to and from the commercial ports of Melbourne and Geelong[12], along with disruptions to state and national supply chains.

[12] EMV – VERA report

Table 2. History of significant or major oil spills in or near Australian waters[13]

Date	Vessel	Location	Oil amount
03 March 1970	Oceanic Grandeur	Torres Strait, QLD	1,100 tonnes
26 May 1974	Sygna	Newcastle, NSW	700 tonnes
14 July 1975	Princess Anne Marie	Offshore, WA	14,800 tonnes
10 September 1979	World Encouragement	Botany Bay, NSW	95 tonnes
29 October 1981	Anro Asia	Bribie Island, QLD	100 tonnes
22 January 1982	Esso Gippsland	Port Stanvac, SA	unknown
03 December 1987	Nella Dan	Macquarie Island	125 tonnes
06 February 1988	Sir Alexander Glen	Port Walcott, WA	450 tonnes
20 May 1988	Korean Star	Cape Cuvier, WA	600 tonnes
28 July 1988	Al Qurain	Portland, VIC	184 tonnes
21 May 1990	Arthur Phillip	Cape Otway, VIC	unknown
14 February 1991	Sanko Harvest	Esperance, WA	700 tonnes
21 July 1991	Kirki	WA	17,280 tonnes
30 August 1992	Era	Port Bonython, SA	300 tonnes
10 July 1995	Iron Baron	Hebe Reef, TAS	325 tonnes
28 June 1999	Mobil Refinery	Port Stanvac, SA	230 tonnes
26 July 1999	MV Torungen	Varanus Island, WA	25 tonnes
03 August 1999	Laura D'Amato	Sydney, NSW	250 tonnes
18 December 1999	Sylvan Arrow	Wilson's Promontory, VIC	less than 2 tonnes
02 September 2001	Pax Phoenix	Holbourne Island, QLD	less than 1000 litres
25 December 2002	Pacific Quest	Border Island, QLD	greater than 70 km slick
24 January 2006	Global Peace	Gladstone, QLD	25 tonnes
11 March 2009	Pacific Adventurer	Cape Moreton, QLD	270 tonnes
21 August 2009	Montara Wellhead oil platform	NW Australian coast	Approx 4,750 tonnes
03 April 2010	Shen Neng 1	Great Keppel Island, QLD	4 tonnes
09 January 2012	MV Tycoon	Christmas Island	102 tonnes
March 2014	Unknown source	Golden Beach, VIC	unknown

2.2.4 Risk of hazardous materials spills

Hazardous materials spills may occur as the result of a maritime casualty, accidents occurring during loading or unloading, or as illegal discharges at sea. Sections 2.2.2-3 'Risk of maritime casualty and marine oil pollution' are also relevant to the risk of hazardous material spills occurring.

Packaged hazardous materials are carried on container ships in special storage tanks, housed within a 20-foot ISO container-sized frame, or stored in drums and loaded into standard shipping containers. If these containers become dislodged during transit, they may break open and leak, or entire containers may be lost overboard. Containers, drums or other packages containing chemicals occasionally wash up on shore, posing a potential risk to the public and environment.

When highly reactive chemicals are allowed to mix with water, air or other chemicals, there is the potential for violent reactions, explosions, fires or release of toxic vapours to occur. The consequences to the safety of the ship, its personnel and the public may be severe, even though there may be little risk to the environment from such a spill.

[13] AMSA – Major historical incidents data

International safety standards govern the stowage and segregation of hazardous materials to reduce the risk of chemicals interacting while stored on board vessels. Accredited training is also available to crew and shoreline personnel in the handling of hazardous materials.

Part B provides further details on the control and response to hazardous materials incidents.

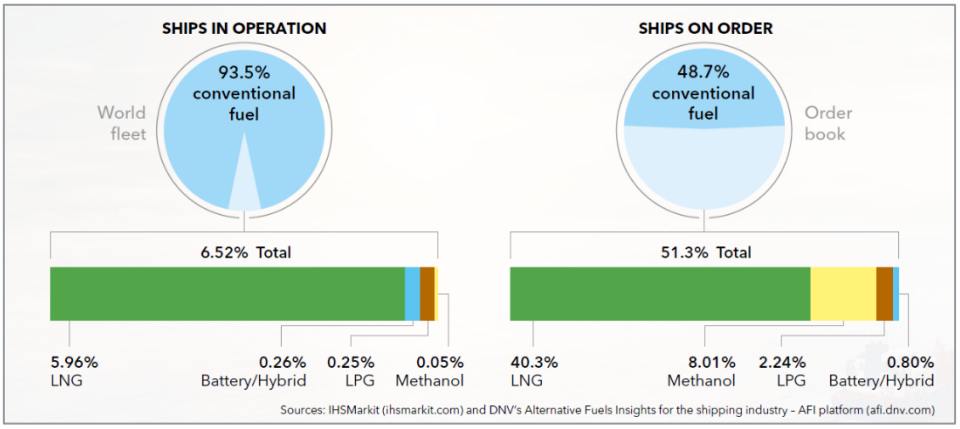
2.2.5 Changing Fuel Types

In response to climate change and the requirement to reduce global Greenhouse Gas (GHG) emissions, the shipping industry is moving to reduce emissions across international shipping by at least 40 per cent (compared to 2008 levels) by 2030 and net-zero emissions by, or around 2050[14].

On 1 January 2020, all ships and vessels operating anywhere in the world were required reduce their emissions of sulphur oxide (SOx) by either using fuel oil with a maximum sulphur content of 0.5 per cent m/m or installing an approved exhaust gas cleaning system.

Alternative fuel technology uptake in the maritime industry is increasing (Figure 5), with half the ordered tonnage capable of using Liquefied Petroleum Gas (LPG), Unleaded Petroleum (ULP), or methanol in dual-fuel engines, compared to one third of the tonnage on order in 2022.[15] Alternative fuels will require significantly different response capabilities and recovery strategies, compared to those used for oil fuels.

Figure 5. Alternative fuel uptake in the world fleet by gross tonnage.



2.2.6 Wildlife affected by oil and hazardous materials

DEECA is the lead agency for responding to wildlife impacted by marine and freshwater pollution.

In the event of an oil or hazardous materials marine pollution emergency, large numbers of wildlife, particularly seabirds and marine mammals may be affected. Threatened species and marine ecosystems could also be impacted.

Risks are greatest at breeding and feeding locations such as coastal wetlands, mudflats and offshore islands (some examples include the Ramsar listed areas of Port Phillip, Gippsland Lakes, Western Port and Corner Inlet, Phillip Island, Lady Julia Percy Island, Gabo Island and Logans Beach whale nursery).

[14] 2023 International Maritime Organisation GHG Strategy

[15] https://www.dnv.com/maritime/publications/maritime-forecast-2023/download-the-report/

DEECA, with support from partner agencies (such as Parks Victoria and Phillip Island Nature Park), will assess the welfare needs of wildlife during an emergency and determine and lead wildlife response activities.

2.3 Risk mitigation

Maritime emergencies are classified as a Class 2 Emergency under the *Emergency Management Act 2013*.

The relevant control agency works with the EMC, Emergency Management Victoria (EMV), other government agencies, industry, and the community to reduce and mitigate the consequences of a maritime emergency on the community.

Mitigation of maritime emergency risk is largely achieved through industry construction standards, legislation and regulation. The *Marine Safety Act 2010* provides for safe navigation rules, port operations procedures and maritime qualification requirements, such as local knowledge certificates and recreational vessel licensing. These involve state, national, and international rules, agreements and arrangements (Appendix 1). The application of agreements and arrangements to mitigate maritime emergency risk, is largely beyond the scope of this Sub-Plan.



2.3.1 Industry Standards

A range of international conventions exist to provide standards and measures which help prevent maritime emergencies. Australia is signatory to the International Maritime Organisation's (IMO) *International Convention for the Prevention of Pollution from Ships 1973* and *International Convention on Oil Pollution Preparedness, Response and Cooperation*. Further information on international conventions can be found in Appendix 1.

The AMSA *National System for Domestic Commercial Vessel Safety* provides a consistent approach to safety for owners, operators, and crew of commercial vessels working in Australia and has been designed to improve marine safety and make it easier for seafarers and their vessels to work around Australia. The national system ensures commercial vessels working in Australia have a certificate of survey and a certificate of operation. Crew working on commercial vessels should also have a certificate of competency and a local knowledge certificate in certain waterways.

2.3.2 Safe navigation

Vessel traffic services

In accordance with international conventions, AMSA issues Vessel Traffic Services (VTS) 'Instruments of Authority' to approved providers to manage, operate and coordinate vessel movements.

VTS services contribute to safety of life at sea, the safety and efficiency of vessel navigation, and the protection of the marine environment, the adjacent shore area and worksites from possible adverse effects of maritime traffic.

Harbour Masters

Harbour Masters are appointed within commercial or local ports and control all shipping movements within their port waters. Under the *Marine Safety Act 2010* the Harbour Master's main functions are to control and direct:

- vessels entering and leaving the waters for which they have been engaged
- the navigation and other movement of vessels in those waters
- the position where and the manner in which any vessel may anchor or be secured in those waters
- the time and manner of the taking in or discharging from any vessel of cargo, stores, fuel, fresh water and water ballast in those waters
- the securing or removal of any vessel in those waters in, from or to any position the harbour master thinks fit
- any other thing for or with respect to the management of the operation of vessels in the waters for which the harbour master has been engaged.

Where Harbour Masters are appointed in commercial or local ports, they have the powers to prohibit the entry to (or require removal of a vessel from) waters under their control if they believe it is:

- is unseaworthy, or
- in imminent danger of sinking and causing an obstruction to navigation, or
- in imminent danger of causing serious damage to the marine environment or property in those waters.

Pilotage

The *Marine Safety Act 2010* sets out pilotage requirements for vessels over 35m LOA (length overall). It also allows Safe Transport Victoria to specify areas where the master of a vessel requires a local knowledge certificate. This applies to locations where it is considered local conditions provide a sufficient risk to vessel operations.

Navigation channel maintenance

Hydrographic surveys can be undertaken periodically to monitor channel cross sections, including the depth in existing ports and harbours, and any navigational hazards. These surveys inform periodical maintenance, issuing of Notices to Mariners and allows for the safe navigation of vessels.

2.3.3 Planning and regulation

Workplace safety

Workplace safety in and around ships is primarily regulated by the Victorian Workcover Authority (WorkSafe Victoria), Safe Transport Victoria and AMSA. The *Marine Safety Act 2010* promotes safe marine operations in Victoria by introducing marine safety duties, creating a 'chain of responsibility' for all parties who have a role in ensuring safety, and providing a framework to ensure vessels are fit for purpose and those who operate them have the skills to do so safely.

Environmental duty

The general environmental duty (GED) is at the centre of the *Environment Protection Act 2017*, and it applies to all Victorians, and all businesses located in Victoria. The GED makes it clear that businesses have a responsibility to reduce risk to human health and the environment. The Act focuses on preventing waste and pollution, rather than managing impacts after they occur. The GED is criminally enforceable.

Port Safety and Environment Management Plans

The *Port Management Act 1995* requires all local and commercial ports to prepare a Port Safety and Environment Management Plan (PortSEMP). PortSEMPs facilitate a whole-of-port approach to hazard and risk management, particularly for the interface between land and water in ports.

Port Emergency Management Plans

Certain ports, particularly commercial ports, prepare Port Emergency Management Plans which detail arrangements to achieve preparedness for, response to, and recovery from emergencies that could occur within the port. The plans are integrated with national, state and local (municipal) emergency management arrangements.

2.3.4 Assets and capability

Equipment

Victoria maintains marine pollution response equipment stockpiles in strategic locations around the state, in accordance with response type and needs, with a focus on areas identified as high risk. Further details on stockpile locations are in the Operational Plan (Part B).

Victoria's commercial port operators have emergency maritime-sourced oil pollution response equipment on standby. Further state-owned equipment stockpiles are located along the Victorian coast. Additional equipment is available through the National Plan arrangements.

Under National Plan arrangements there is one contracted Emergency Towage Vessel (ETV) based in Geelong. Additional harbour tugs and vessels of opportunity may be made available to assist with

maritime casualty (NSR) response. ETV capability is privately owned and operated. It is usually activated through commercial arrangements between the vessel owner and the ETV operator.

The ability to respond to a maritime casualty in open waters is reliant on the availability and capability of an ETV to handle the larger and heavier ships being used, and the often severe sea conditions they are required to work in.

Personnel

The *Emergency Management Act 2013* requires control agencies to maintain a trained, ready and capable emergency management surge workforce that is available to respond to an emergency event. This is supported by resources available through intergovernmental agreements and support arrangements as outlined in the SEMP (see section 4 for further information).

2.3.5 Shared responsibility for action

Each member of the community has a role to play in the maritime emergency continuum (before, during and after an incident).

An example of an individual's responsibilities within the maritime emergencies' context, includes owners and masters of vessels taking responsibility for their vessel:

- ensuring it is seaworthy
- having appropriate safety systems in place
- having an emergency plan
- adhering to maritime laws, guidelines and protocols.

For government agencies, businesses and industry, shared responsibility includes:

- marine safety awareness programs
- applying risk-based regulation
- creating partnerships with industry to build capability and capacity
- ensuring an effective, well-coordinated response to emergencies
- helping communities affected by maritime emergencies to recover and build resilience for future events.

The principles of shared responsibly are listed in the *Marine Safety Act 2010* which outlines that marine safety is the shared responsibility of:

a. owners of vessels; and
b. marine safety workers; and
c. persons involved in recreational boating activities; and
d. pilots and pilotage services providers; and
e. port management bodies, the port of Melbourne operator, local port managers and waterway managers; and
f. other persons who:
    i. design, commission, construct, manufacture, supply, install, maintain, repair or modify marine safety infrastructure, vessels or marine safety equipment; and
    ii. supply marine safety infrastructure operations to port management bodies; and
g. Safe Transport Victoria; and
h. the public.

The level and nature of responsibility that 'a person' referred to above has for marine safety is dependent on the nature of the risk to marine safety that the person creates from the carrying out of an activity (or the making of a decision) and the capacity that person has to control, eliminate or mitigate that risk.

General information on safe recreational boating can be found on the Safe Transport Victoria's Website.

The concept of 'shared responsibility' also recognises that some people and communities may be disproportionally affected and/or at greater risk in emergencies, based on factors like:

- the type and extent of the emergency
- the situational and consequential factors
- other changing and variable circumstances.

The Victorian Emergency Management Planning Toolkit for People Most at Risk is a resource for all emergency management practitioners to use in considering and planning for the needs of groups of people and communities most at risk in emergencies.

Shared responsibility for managing and protecting Aboriginal cultural heritage

The Victorian Government, and the agencies/organisations named in this Sub-Plan, acknowledge Aboriginal people as Australia's first people, and as the Traditional Owners and custodians of the land.

Aboriginal and Torres Strait Islander people have a deeply spiritual, cultural and economic connection to the land and sea, which is reflected the Marine and Coastal Policy March 2020.

Aboriginal cultural heritage can be vulnerable to maritime emergencies, and it is important to that the planning and preparing phases for maritime emergencies considers the impact on Aboriginal heritage places. Emergency response activities should work to protect, preserve and minimise disruption to Aboriginal cultural heritage.

It is recommended that relevant Traditional Owners be included in all phases of emergency management, including through direct participation in incident management teams (IMT) and that regional/local response plans should have pre-identified relevant Traditional Owner contacts and relationships well established, prior to an emergency incident occurring. Registered Aboriginal Parties can be found via https://www.aboriginalheritagecouncil.vic.gov.au/victorias-current-registered-aboriginal-parties

Where a Registered Aboriginal Party has not been appointed, advice on relevant Traditional Owner contacts can be provided by First Peoples State Relations.

Management of maritime emergencies (NSR)

3.1 Victorian governance arrangements

Victoria has an extensive set of legislation and plans that govern national, state and local responses to maritime emergencies, these are summarised in Appendix 1. The implementation of the legislation is supported by port directions, memoranda of understanding and emergency management standards and systems that operate across the Victorian emergency management sector.

The State Crisis and Resilience Council (SCRC) is responsible for approving Part A of this Sub-Plan as the *SEMP Maritime Emergencies (NSR) Sub-Plan.*

There are a number of working and consultative groups that provide oversight and expert advice regarding maritime emergencies in Victoria.

3.1.1 State Maritime Emergencies Working Group (SMEWG)

The State Maritime Emergencies Working Group (SMEWG) is a working group that focuses on stakeholder collaboration and strategic planning and preparedness for maritime emergencies.

The SMEWG is the primary forum for coordinated development and implementation of preparedness and response activities in Victoria.

3.1.2 Environmental, Scientific and Technical Reference Group

The Environmental, Scientific and Technical Reference Group (ESTRG) supports the SMEWG by providing specialist environmental, scientific and technical advice relating to the implementation of the Maritime Emergencies (NSR) Sub-Plan. The ESTRG is supported by a secretariat provided by DTP.

Matters can be referred to the reference group by any of the Regional Reference Groups or the SMEWG.

3.1.3 Regional Maritime Emergency Reference Groups (RMERG)

To support the arrangements specified in this Sub-Plan, the control agency for each jurisdictional area for maritime emergencies (refer Appendix 4) is required to coordinate and oversee the administration and management of a RMERG.

Each RMERG will ensure linkages are in place with Municipal or Regional Emergency Management Planning Committees (REMPC) to share information and to contribute to the Community Emergency Risk Assessment (CERA) process.

The Chairs of each of the RMERGs are standing members of the working group of the SMEWG.

Each RMERG is responsible for providing advice and regular updates to SMEWG relating to their capability and capacity and regional risk. They will also ensure their procedures related to this Sub-Plan include, but are not limited to, points of access, egress, equipment locations and communications arrangements.

3.1.4 Port Management Consultative Groups

Ports often have consultative groups which come together to collaborate on and share port wide improvement opportunities in health, safety, emergency, environment and sustainability matters.

Consultative groups can be made of representatives from emergency service agencies, users of the port, local government or other agencies with linkages to the use of Ports.

These groups can play an advisory role to the SMEWG and can also escalate issues or risks to a state level via the SMEWG.

Where agreed with DTP, a port management consultative group may substitute as an RMERG regarding the governance arrangements in this Sub-Plan.

3.2 Key state and national control and coordination roles

3.2.1 Role of the Emergency Management Commissioner

Maritime emergencies can be particularly complex and require coordination across several control agencies before, during and after the event.

The EMC is responsible for ensuring effective control arrangements are in place, before, during and after maritime emergencies (see SEMP for full description of the EMCs role).

3.2.2 State Controller Maritime Emergencies

The *National Plan* requires Victoria to appoint a single point of contact for this Sub-Plan, for the purposes of being the *Victorian Marine Pollution Contingency Plan*. This Sub-Plan provides for the single point of contact to be undertaken by the State Controller Maritime Emergencies (SCME).

The Secretary, DTP has delegated the powers and functions under the *Marine (Drug, Alcohol and Pollution Control) Act* (sections 38, 39, 71A and 71B) to DTP officers to perform the role of the SCME, and the Victorian delegate on the relevant National Plan advisory committee. The SCME is also responsible for authorising the activation of the National Plan resources through AMSA, including trained personnel, specialist equipment, trajectory modelling and the fixed wing aerial dispersant capability (see Section 4.1.2).

3.2.3 Class 2 Emergency - State Controller

The State Controller (SC) leads the operational response to a Class 2 emergency and establishes an appropriate management structure for the emergency (see the SEMP for full description of the SC Class 2 emergencies role). In the event of a large or complex emergency, the Secretary, DTP may appoint other officer(s) to have the responsibility for the functions of the SC.

Appropriately qualified senior officers within other agencies such as FRV, CFA, DEECA or Parks Victoria may also be appointed to perform the role of SC by the Secretary, DTP.

3.2.4 Role of the Maritime Emergency Response Commander

The Maritime Emergency Response Commander (MERCOM) is appointed by AMSA and is supported by statutory powers under the *Protection of the Sea (Powers of Intervention) Act 1981.*

The MERCOM has powers to intervene and exercise final decision making, on behalf of the Australian Government, when the MERCOM assesses that a maritime casualty poses a significant threat of pollution.

During any emergency, the SCME or EMC may request assistance from AMSA or that AMSA manage the incident on their behalf.

In doing so, the MERCOM will consider the views of the SCME and the EMC. This includes community views about economic, environmental, community and social interests that could be impacted by the MERCOM's decisions. For example, in determining a place of refuge for a maritime casualty consideration would be given to the risks to the local coastal environment and/or economy.

The MERCOM's decisions will be expeditiously communicated to all relevant stakeholder groups and fully documented.

The MERCOM will not respond to maritime casualties within ports or involving vessels under Safety of Life at Sea (SOLAS) limits, except where an assessment is made that there is a significant threat of marine pollution and that adequate measures are not being taken.

The key powers of the MERCOM to intervene and direct include:

- taking of action in relation to the casualty vessel in accordance with paragraphs 8(2)(a), 9(2)(a) or 10(2)(a) of the *Protection of the Sea (Powers of Intervention) Act 1981* depending on the nature of the incident and geographical location of the incident (e.g. moving the ship or cargo, salvage the ship or cargo, take control of the ship, etc.)
- issuing directions of the kind authorised by section 11 of the *Protection of the Sea (Powers of Intervention) Act 1981* in accordance with paragraphs 8(2)(b), 9(2)(b) or 10(2)(b) of the Act depending on the nature of the incident and geographical location of the incident (e.g. directing the owner, master, salvor or any other third party, etc.)
- having the authority to take any action deemed necessary with regard to assessing and granting *Place of Refuge* requests in internal or coastal waters.

3.2.5 Role of coordination

The EMC is responsible for the coordination of activities of agencies and is supported to undertake this role by Victoria Police (as outlined in the SEMP). In the event of a maritime emergency, the incident or state controller will liaise with Regional Emergency Response Coordinator (RERC) regarding the emergency.

The RERC will then contact the IC/SCME to assure themself that:

- appropriate resources are at the disposal of the IC/SCME and
- appropriate agencies are notified and engaged in the response.

A part of the RERC role is to provide an assurance function through the Senior Police Liaison Officer (SPLO), who provides information to the EMC as to whether control is being exercised effectively and that all appropriate agencies are engaged.

If during an incident, a control agency is not identified, the RERC will nominate an agency with suitable capabilities to assume control until determined otherwise by the SCME.

In the case of a major or complex emergency (Level 2 or 3) involving several control agencies, it is the responsibility of the Incident Controller (IC)/SC, in consultation with the RERC/SCME to establish the Incident Management Team (IMT) and a maritime Emergency Management Team (EMT). The composition of the EMT should consider the type of emergency, location, potential consequences and the support/specialist advice required to resolve it. Further information on specialist support and advice is outlined in Part B of the Sub-Plan.

For all Level 2 and 3 Incidents the RERC will be involved in the EMT to provide the coordination function.

The process for the appointment of ICs is addressed in section 3.4.7 of the subplan.



3.3 Response and recovery

3.3.1 State emergency management priorities

The State Emergency Management Priorities underpin and guide all decisions during a response to any emergency. (Table 3).

Table 3. State emergency management priorities for managing emergencies.

State Emergency Management Priorities	How this applies to Maritime Emergencies
Protection and preservation of life and relief of suffering is paramount. This includes: - safety of emergency response personnel and - safety of community members including those most at risk in emergencies, residents and visitors/tourists.	Risk assessment principles will be undertaken to ensure that appropriate Work Health and Safety (WHS) systems are in place to protect emergency responders, as well as offshore and maritime workers during an incident. WHS procedures for maritime emergencies should be followed. The search for and rescue of any vessel occupants and their safety during an incident is paramount to all other maritime operations. Members of the community need to be appropriately informed and exclusion zones should be established and maintained around hazardous areas.
Issuing of community information and community warnings detailing incident information that is timely, relevant, accessible and tailored to assist community members make informed decisions about their safety.	Appropriate and accessible information and warnings should be issued as soon as possible and should include tailored, timely and relevant information to assist community members to make informed decisions about their safety. If an Emergency Alert is required, it should be issued immediately.
Protection of critical infrastructure and community assets that support community resilience.	Response and recovery strategies should protect and minimise disruptions to critical built public infrastructure (economic and social) such as power, water, gas and transport system assets (including port facilities, shipping channels, roads and recreational boating facilities) that are located on the Victorian coast.
Protection of residential property as a place of primary residence.	In general, residential property would rarely be directly impacted by a maritime emergency.
Protection of assets supporting individual livelihoods and economic production that supports individual and community financial sustainability.	Response and recovery activities should focus on protecting and restoring natural assets including waterways, beaches, habitats that support economic activity such as shipping, tourism and fisheries (aquaculture).
Protection of environmental and conservation assets that considers the cultural, biodiversity, and social values of the environment.	Planning and response strategies should be designed to minimise the overall environmental impact on the cultural, biodiversity and social values of the environment. Strategies should consider the protection and management of Aboriginal cultural heritage during response and recovery activities.

3.3.2 Command

AIIMS structure and maritime emergencies

Responses to maritime emergency incidents will be managed in accordance with the principles of the Australasian Inter-service Incident Management System (AIIMS) and in line with the command and control arrangements outlined in the SEMP.

The following doctrine, relating to Incident Management in Victoria, should be read in conjunction with this Sub-Plan:

- State Emergency Management Plan
- Victorian Emergency Operations Handbook
- Emergency Management Team Arrangements
- Joint Standard Operating Procedures

Part B of this Sub-Plan outlines the operational strategies and tactics for each of the maritime emergency hazards.

In an emergency context, command operates vertically within an agency and refers to the direction of personnel and resources within individual agencies in carrying out the agency's role and tasks when responding to an emergency. Authority to command is established in the SEMP.

Where there are agreed arrangements, a functional commander can direct members and resources of more than one agency in accordance with those arrangements.

A support agency is an agency that provides essential services, personnel or material to support or assist a control agency in responding to an emergency. Any agency may be a support agency in a major emergency if it has skills, expertise or resources that may contribute to the management of the emergency.

3.3.3 Functional area overview for maritime emergencies

All the functional areas of AIIMS are utilised during a maritime emergency, although some extra functions, specific to maritime response, may be included in the structure.

Control – The IC is responsible for controlling the incident and ensuring that all incident management functions are undertaken.

Planning – The planning function is responsible for development of objectives, plans and strategies, maintaining a resource management system, and assembling, maintaining and providing incident information. The planning unit is responsible for maintenance of the Common Operating Picture (COP) in the absence of a specified intelligence unit.

For maritime emergencies the planning unit will be responsible for leading and developing the Spill Impact Mitigation Assessment (SIMA), also known as Net Environmental Benefit Analysis (NEBA). The planning unit may also include representatives from AMSA – such as a Maritime Casualty Officer (MCO).

Public Information – The public information function is responsible for the preparation, coordination and dissemination of incident warnings and advice to potentially affected communities, the public, media, other agencies and incident personnel.

Operations – The operations function is responsible for the tasking and application of resources to resolve an incident. For marine oil pollution emergencies, the operation unit may include wildlife, waste, marine, aviation, and shoreline sections.

In the case of maritime casualty, consistent with the National Plan, a specific Maritime Casualty Control Unit (MCCU) may be established under operations to:

- oversee and monitor actions taken in response to a maritime casualty
- view salvage and other relevant response plans
- provide a platform for key stakeholders to discuss and maintain situational information.

The process for implementation and operation of the MCCU is detailed within the *AMSA Maritime Casualty Management Guideline*. The MCCU should include:

- maritime casualty officer
- marine pollution advisor
- environmental advisor
- salvage/emergency towage representatives
- vessel owner's representative
- Harbour Master.

Logistics – The logistics function is responsible for the acquisition and provision of human and physical resources, facilities and materials necessary to support the resolution of the incident.

Intelligence – The intelligence function is responsible for obtaining modelling, observations and predictions, analysing and interpreting them in order to provide information to inform development and/or review of an incident action plan.

In smaller incidents, the intelligence function may reside within the planning unit. In larger scale incidents this function is a separate unit reporting directly to the incident or state controller.

For maritime emergencies the intelligence unit will be responsible for:

- establishing and maintaining the COP
- requesting and analysing trajectory modelling
- undertaking the scientific environmental modelling and analysis required for the SIMA
- maintaining regular contact with the Bureau of Meteorology as a key source of predictive information.

The intelligence unit may also include representatives from:

- Australian Maritime Safety Authority (AMSA)
- Environment agencies (DEECA, Environment Protection Authority (EPA))
- Industry bodies

Investigations – To support cost recovery an investigation will need to be undertaken to definitively identify the polluter. The EPA undertakes investigations into marine pollution incidents in accordance with legislation.

The EPA and/or NOPSEMA will act as the primary support agency for investigations. Depending on the nature of the incident other agencies may be involved in investigations including (but not limited to) Safe Transport Victoria, Victoria Police, AMSA or fire services.

Part B of the Maritime Emergency (NSR) *Sub-Plan* outlines the process for activating the EPA. Samples collected for investigation purposes are required to be taken by an EPA authorised officer in accordance with relevant sampling and chain of custody procedures.

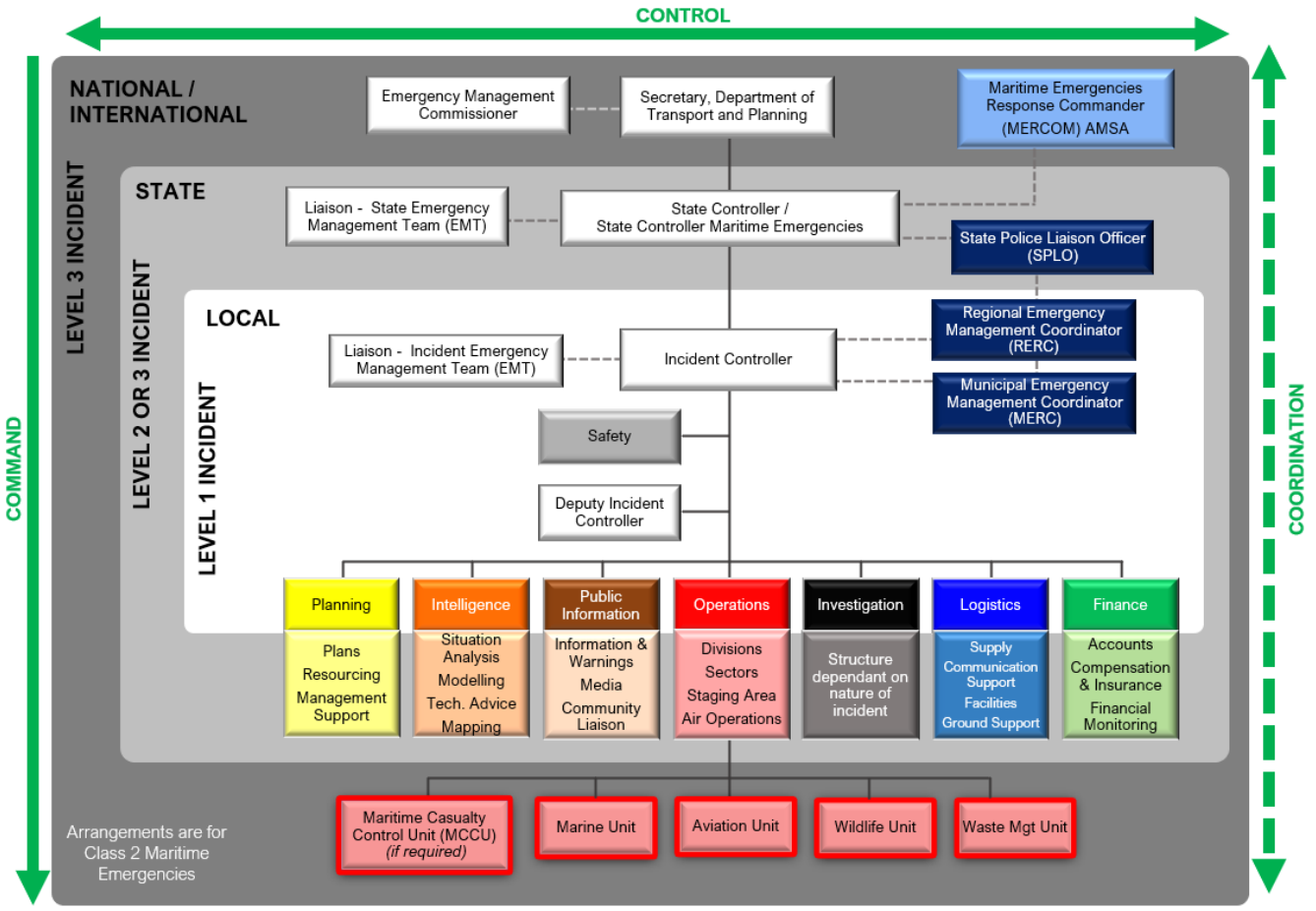
NOPSEMA undertakes inspections, investigations, and enforcement actions of offshore petroleum titleholders to ensure compliance with their accepted risk management plans and the broader legislative framework. NOPSEMA will commence an investigation if a marine pollution incident involves offshore petroleum titleholders.

Finance – The finance function is responsible for managing accounts for purchases of supplies and hire of equipment and services; insurance and compensation for personnel, property and vehicles; and the collection of cost data and provision of cost-effective analyses and providing cost estimates for the incident.

Investigation and finance activities will often be undertaken by the operations and logistics units respectively. These functions should be established as units where the IC believes it is necessary and appropriate for the effective management of the incident. The standing up of these functions is not aligned to an incident level.

Figure 6 shows an example expanded AIIMS structure for a Level 1 local emergency (centre white rectangle), scaling up to a structure for a major Level 3 national emergency (outer dark grey rectangle).

Figure 6. Example of command structures for different levels of Class 2 maritime emergencies *(incorporating AIIMS principles of Command, Control and Coordination)*



The key principles of the structures shown in figure 6 are:

- there is a single IC, and the IC remains in overall control and sets the objectives of the incident, however, as the size and/or complexity of each of the hazards involved increases, the IC may delegate certain duties (including independent decision making) to a Deputy IC, to ensure focused oversight of the management strategies and tactics associated with that hazard
- as the size and/or complexity of each of the hazards involved in the maritime emergency increases, the operations function may be separated out into focused units by hazards or sub-functions such as wildlife and waste management
- the functions of logistics, planning, intelligence, public information and finance remain as shared functions to minimise duplication and to ensure response efforts are effectively coordinated (for example: one source, one message for public information and warnings).

NB: The vessel master of any vessel/s involved in an incident, remains in command of the vessel and its crew.

3.3.4 Incident levels

The incident level of a maritime emergency will be determined by the actual or possible consequences, the number or nature of the resources required, duration and complexity of response (cargo types and nature of the recovery operations required).

In accordance with AIIMS, and under the National Plan, there are three incident levels for maritime emergencies (NSR). This subplan will utilise the same criteria as the National Plan for categorising incidents as follows:

- Level 1 Incidents are generally able to be resolved through the application of local or initial resources only (e.g. first-strike capacity)
- Level 2 Incidents are more complex in size, duration, resource management and risk, and may require deployment of jurisdiction resources beyond the initial response, requiring state involvement
- Level 3 Incidents are generally characterised by a degree of complexity that requires the IC to delegate all incident management functions to focus on strategic leadership and response coordination and may be supported by national and international resources (Refer to *section 4.1.2* for more information).

In the event a Level 1 incident escalates beyond first strike capability, the SCME will determine the incident level.

Incident classification by the likely consequences, rather than a set criterion, recognises for example, that the spilling of a set amount of oil in offshore waters, as opposed to the same volume spilling in port waters or near the shoreline will have very different consequences and levels of response required.

3.3.5 Deeming of a major emergency

Level 2 and Level 3 maritime emergencies are likely to involve state or national response efforts, these emergencies are likely to meet the definition of a *major emergency* under the *EM Act 2013*, requiring notification to the EMC.

A *major emergency* is a large or complex emergency which:

- has the potential to cause or is causing loss of life and extensive damage to property, infrastructure or the environment; or
- has the potential to have or is having significant adverse consequences for the Victorian community or a part of the Victorian community; or
- requires the involvement of two or more agencies to respond to the emergency.

The SCME is responsible for notifying the EMC should the incident be considered a major emergency.

3.3.6 Consequence management

Under the *Emergency Management Act 2013*, the EMC is responsible for consequence management during a major emergency, which is defined as is the coordination of agencies to minimise the adverse effects of emergencies on people, communities, infrastructure and the environment. The State Emergency Management Team (SEMT), comprised of senior officials from departments and agencies, manages immediate and medium/long-term high-level impacts of an incident.

Consequences, including the capability and capacity of the control and support agencies to manage them, should be considered in all aspects of maritime emergency planning and preparation.

Maritime emergency consequence planning should take into consideration the following potential impacts:

- social and Aboriginal cultural heritage impacts
- species and habitat loss
- environmental damage
- tourism impacts
- disruption to marine aquaculture, recreational and commercial fishing operations
- disruption to freight shipping movements and potential supply chain impacts
- disruption to business or infrastructure
- economic loss at local, regional or state levels
- health impacts due to contact with pollutants, ingestion of contaminated seafood or impacts on mental health due to impacts on livelihood, income or loss of cultural values.

3.3.7 Relief

Emergency relief involves the provision of essential needs to individuals, families, and communities during and in the immediate aftermath of an emergency. The relief needs of individuals, families, and communities will be complex and specific to each incident. Relief planning and coordination is a function of the Controller from the onset of the emergency. However, there are several overarching relief priorities for maritime emergencies which are:

- provision of need-based assistance for the immediate health and wellbeing of individuals and communities
- animal welfare for any impacted wildlife
- debris and pollution clean-up and removal
- planned and timely access to restore critical infrastructure (including ports)

- provision of timely, relevant, tailored, and accessible relief information to assist community members to make informed decisions
- effective and efficient state, region/incident and local relief coordination arrangements.

Refer to the SEMP for the relief responsibilities of the IC, RC and the SMEC.

3.3.8 Recovery

Under the *EM Act 2013*, the EMC has overall responsibility for coordination before, during and after major emergencies. The SEMP further outlines relief and recovery coordination responsibilities, as well as the lead and support agencies involved in the delivery of relief and recovery activities and services.

Recovery activities will commence during the response phase. As such, high levels of understanding and cooperation are required between response and recovery organisations at each operational tier (state, regional, municipal) and each recovery environment and activity. Response and recovery activities may need to be managed concurrently in some areas impacted by a maritime emergency.

The recovery coordination responsibilities outlined in the 'Roles and Responsibilities' section of the SEMP, include:

- for state recovery coordination: Emergency Recovery Victoria (ERV)
- for regional recovery coordination: ERV
- for municipal recovery coordination: local government.

There are specific state-level governance arrangements in place to support recovery following a major emergency, particularly the State Recovery Coordination Committee and its working groups.

Transition to recovery

Large or complex maritime emergencies have the potential to impact all of the recovery environments. During any level of maritime incident, planning for recovery should begin as soon as the potential impact of the emergency becomes understood, and should include having dedicated recovery officers as part of IMT and EMT structures.

The SEMP specifies the arrangements for the coordinated planning and management of transition from response to recovery in Victoria.

Transition plans should be developed collaboratively between ICs and RCs, as well as ERV Recovery Coordinators and local government at the relevant tiers with appropriate and agreed resources, both prior to and post transition.

An important component is a seamless transition of communications, where recovery messaging should be integrated with response information as early as possible to facilitate a smooth transition to recovery, alongside other components required for effective transition to recovery.

Transition from response to recovery is not always a clearly defined step. There may be a legitimate need to instigate recovery in some areas while the response phase is still in operation. This is a phased transition to recovery. The teams at the relevant incident, regional and state tiers should agree on the timing and phasing of the transition, the activities required and who is responsible.

The recovery process after an emergency is often complex and for small incidents may be short (weeks/months), however for large emergencies, recovery can often take many years.

Transition to recovery arrangements are covered in more detail in the Operational Plan (Part B).

Recovery Outcomes

The Victorian Recovery Outcomes Framework establishes the following systemic outcomes relevant to a maritime emergency:

- people get the recovery supports they need in a timely, safe, and readily accessible way
- communities are actively involved in decisions affecting their recovery
- Aboriginal people are the authorisers and central to decision making for their recovery
- recovery delivery is efficient, coordinated, and evidence informed
- recovery responses strengthen community capability to manage their own recovery and resilience to future disasters
- the recovery workforce has the capabilities and support needed to respond to community needs.

Where a maritime emergency has significant effect on the natural environment, the recovery should seek to, where viable, restore environmental values lost or damaged through the emergency event and response activities[1].

Agency roles and responsibilities across the lines of recovery

The recovery process, much like preparing for emergencies, is a shared responsibility between, governments, agencies, non-government organisations and communities. Victoria has a 'Resilient Recovery Strategy' which identifies four strategic actions to promote a shared responsibility approach to recovery planning and delivery. The SEMP identifies four recovery environments:

- social
- economic
- built, and
- natural.

ERV's 'Recovery Framework' builds on the SEMP, identifying five 'lines of recovery' that both align to the SEMP recovery environments and include a separate line of recovery for Aboriginal Culture and Healing:

- People and Wellbeing
- Aboriginal Culture and Healing
- Environment and Biodiversity
- Business and Economy
- Building and Infrastructure

Each of these lines of recovery have assigned responsibilities for Recovery Coordinating Agencies (RecCA), Recovery Lead Agencies RecLA) and Recovery Support Agencies (RecSA). These responsibilities are outlined in the SEMP. Each recovery lead or support agency should have the processes in place to scale up in order to implement appropriate recovery activities within their responsibilities outlined in the SEMP, whether through shared resource arrangements or use of trained volunteers for example.

People and Wellbeing

Department of Health (DH) is the recovery coordinating agency for health and medical assistance and is the lead agency for psychosocial support, including coordinating the provision of mental health services and information. Department of Families, Fairness and Housing (DFFH) is the recovery coordinating agency for psychosocial support.

Aboriginal Culture and Healing

ERV is the recovery lead agency for Aboriginal culture and healing, ensuring coordination efforts align with the State Government's commitment to advancing Aboriginal self-determination. Activities in this line of recovery support the recognition of culture and knowledge, physical and mental health and wellbeing, engagement with education, respect for land practices, connection to land, water and wildlife, and strengthened representation in workforce. Recovery activities to meet these commitments span across all lines of recovery but are unified through this line of recovery and its outcomes.

Environment and Biodiversity

DEECA leads coordination of recovery activities for natural environment, public land and waterways, threatened ecosystems and species and wildlife welfare. As with all lines of recovery, the community plays a key role in supporting the delivery of these activities.

Business and Economy

Department of Jobs, Skills, Industry and Regions (DJSIR) is the coordinating agency for recovery activities relating to businesses and local economies. DGS/Local Government Victoria works closely with municipal councils to implement appropriate actions and initiatives that encourage and bring forward the resumption of local economic activity.

Buildings and Infrastructure

DTP is the lead coordinating agency for recovery activities relating to transport. DEECA is the lead coordinating agency for recovery activities relating to energy services, public land assets and water and wastewater services.

3.4 Control

Control is the overall direction of emergency management activities during an emergency across all agencies. Agencies is defined in the *Emergency Management Act 2013* to include all government and non-government agencies.

The 'line of control' refers to the line of supervision for those appointed to perform the control function.

Whilst many emergencies utilise incident, regional and state tiers for the management of incidents, due to the complex nature of maritime emergencies, unlike some Class 1 emergencies, the regional tier is unlikely to be activated unless there are significant consequences widespread across a region(s) that need to be managed.

The line of control for maritime emergencies in Victoria is from the IC directly to the SCME. This is important given:

- span of control for maritime emergencies does not see multiple ICs requiring a regional tier
- the IC needs to be able to directly seek advice and access to intervention powers from the state or national level through the SCME or the MERCOM that have the powers of intervention and direction

- there are limited specialists available, and a regional tier may not be able to be resourced appropriately.

The IC has responsibility for setting the incident objectives and overseeing the strategies and tactics at the incident level. The SCME has responsibility for oversighting incident control and ensuring appropriate resources are available to the IC, that the risk and consequence to the state are being appropriately managed.

The IC may be supported by Deputy ICs and qualified personnel in the operations unit from relevant agencies with a functional expertise (e.g. wildlife, oil pollution). See figure 6.

3.4.1 Agency roles and responsibilities

Maritime emergencies may involve multiple, concurrent hazards, involving multiple agencies and requiring several control agencies to operate together. That is, an incident could be one or more of maritime-sourced oil pollution, maritime casualty, hazardous materials and/or wildlife affected by maritime-sourced oil pollution.

Maritime emergencies are categorised by levels, and control agencies may be determined based on this level (refer to *section 3.3.4 Incident Levels*).

Consistent with the SEMP and for the purposes of understanding the operation of this Sub-Plan, the control agencies for different types of maritime emergencies are outlined in Table 4. The control agency may vary depending on the location (e.g. waterway) of the incident and/or the most significant hazard.

Table 4. Control agencies for different types of maritime emergencies.

Emergency Type	Level 1 Incident	Level 2 or 3 Incidents	Class
Marine Search and Rescue (SAR)	Victoria Police	Victoria Police	Class 2
Hazardous materials[16]	CFA/FRV	CFA/FRV	Class 1
Maritime-sourced oil pollution spills in Victorian coastal waters up to three nautical miles	Ports Victoria, Port of Portland Pty Ltd, Port of Hastings Corporation and Gippsland Ports Committee of Management Inc[17]	DTP	Class 2
Maritime Casualty (non-SAR) – Port Waters	Port Management Bodies / Local Port Managers	DTP	Class 2
Maritime Casualty (non-SAR) – Coastal Waters	Safe Transport Victoria	DTP	Class 2
Wildlife affected by maritime-sourced oil pollution	DEECA	DEECA	Class 2

3.4.2 Control agency jurisdictions for maritime-sourced oil pollution incidents

Ports Victoria, the Port of Portland, Port of Hastings Corporation and the Gippsland Ports Committee of Management Inc have each been issued a Direction under section 71B of the *Marine (Drug, Alcohol and Pollution Control) Act 1988* to assume control and provide an initial (first strike response) for all Level 1 maritime-sourced pollution incidents within state waters.

[16] As per definition in SEMP.

[17] See section 3.4.2 and Appendix 4 for details.

Appendix 4 illustrates the boundaries for establishing control agencies and initial response (first strike) for Level 1 maritime-sourced oil pollution incidents.
DTP will assume control for all Level 2 and 3 maritime-sourced pollution incidents with the support of the other Level 1 control agencies.

3.4.3 Control agency jurisdictions for maritime casualty incidents

It is the responsibility of vessel owners/operators to manage a vessel casualty. Control agencies will oversee the management of the casualty and may intervene if the owner or operator is not taking appropriate or timely action to prevent or mitigate the risk of the emergency. Intervention may include issuing of directions, under the control agency's legal authority, to the owner to take certain actions.

To manage the potential consequences and oversight of vessel casualties, Port management bodies and local port managers are the control agency for maritime Level 1 casualty incidents within their port waters and are responsible for the initial response. Outside port waters, Safe Transport Victoria has control agency responsibilities for Level 1 casualties. Safe Transport Victoria is responsible for the first response outside port waters and may seek support from port management bodies and local port managers with the capabilities to manage the incident. If the casualty is beyond the capabilities of a Level 1 response agency then it should be escalated to the next level control agency.

If there is casualty incident of a size and nature that is beyond the capabilities of the designated control agency, DTP, in consultation with the IC in charge of the initial response, may appoint an IC. The appointed IC may be from another agency or port manager with appropriate capabilities. The AMSA MERCOM (as outlined in section 3.2.4) may also be activated to assist in casualty events.

Maritime casualty incidents have the potential to result in or involve maritime-sourced oil pollution and where it is initially unclear which body of water the vessel is in, or where there is uncertainty as to the jurisdiction, or where the casualty is within multiple jurisdictions, the maritime-sourced oil pollution control agency will assume control and undertake the initial response, until determined otherwise by the SCME.

3.4.4 Control agency jurisdictions for maritime hazardous materials incidents

In Victoria, release of hazardous materials, high consequence dangerous goods or dangerous goods (including leaks and spills) are a Class 1 emergency for which the control agency is either Fire Rescue Victoria (FRV) or Country Fire Authority (CFA), depending on the region[18].

Maritime incidents involving potentially hazardous material spills, either into state waters or occurring as part of a maritime casualty, will therefore be treated as a Class 1 emergency in the first instance.

Only when it is determined by the control agency (FRV/CFA) that the spilled substance is not hazardous and poses no threat to human health, control may transition to the appropriate Class 2 agency to undertake any further necessary response, clean up, or recovery activities.

Control for maritime emergencies involving hazardous materials, or incidents involving vessel fires (Table 5), is defined under the *Country Fire Authority Act 1958* and the *Fire Rescue Victoria Act 1958.*

[18] SEMP- Roles and Responsibilities

Table 5. Control agency areas of responsibility for Level 1, 2 and 3 hazardous materials incidents.

Control Agency	Area of responsibility
Country Fire Authority (CFA)	All country areas as per the CFA Act outside the metropolitan area but not including forest, national parks, or Protected Public Land.
Fire Rescue Victoria (FRV)	All areas in the Fire Rescue Victoria Fire District as defined in the FRV Act.

3.4.5 Control agency jurisdictions for maritime-sourced oil pollution associated with facilities and Commonwealth waters

The relevant titleholder is the control agency for marine pollution incidents in Commonwealth waters originating from an offshore petroleum activity. If the incident has the potential to, or enters state waters, then the relevant state control agency for maritime-sourced oil pollution will assume control for response activities occurring in Victorian state waters only. To facilitate effective coordination between the titleholder and state control agencies and their respective IMTs, a Joint Strategic Coordination Committee (JSCC) may be established.

Where NOPSEMA considers it necessary to intervene during an oil pollution incident to protect the safety of people or the environment, NOPSEMA may direct a petroleum titleholder to take or cease to take certain actions in response to an oil pollution incident under Part 6.2 of the *Offshore Petroleum and Greenhouse Gas Storage Act 2006* (OPGGS Act). In some circumstances, including where actions in response to an oil pollution incident are required to be undertaken on, in or above the land or waters of a state or territory, NOPSEMA's CEO may declare an 'Oil Pollution Emergency' after consultation with the Secretary, DTP and in accordance with section 576B, Division 2A of the OPGGS Act. For significant incidents originating the Commonwealth waters, the Commonwealth may convene the Offshore Petroleum Incident Coordination Committee (OPICC) to guide strategic Commonwealth Government leadership.

If the pollution incident enters state waters DTP will assume control of response activities in state waters if the incident is predicted to escalate in size, complexity or to a Level 2 or 3 response. DTP will maintain continual engagement with the facility operator.

Regardless of who is controlling the incident, in all instances the facility owner/operator or titleholder continues to be responsible for clean-up financially (as part of the response and providing resources to the response) as per their oil pollution environment plan and under relevant legislation and polluter pays principles.

Control arrangements for maritime-sourced oil pollution originating from facilities or vessels are summarised in Table 6.

Table 6. Facility and vessel control agency arrangements.

Emergency location	Control Agency and Jurisdiction
Vessels outside state waters	AMSA Vessels outside state waters. This includes Commonwealth waters at Point Wilson, Western Port (HMAS Cerberus) and any 'activated' naval waters. Under the National Plan arrangements, AMSA may request that the state take control if: • the spill is likely to impact on the Victorian shoreline • AMSA personnel are in-transit to the location of the incident and/or • it is more practical to have the state respond on behalf of AMSA.
Maritime facility* within or adjoining state waters	Facility operator *DTP may assume control if the response is escalated.*
Offshore petroleum facility** beyond 3 nm	Facility operator *DTP may provide a liaison officer within the Incident Management Team (IMT). The relevant state control agency will assume incident control for any portion of the spill that enters state waters, with ongoing support from the operator.*

*Maritime facility includes but is not limited to a wharf or mooring at which a vessel can be tied up during the process of loading or unloading a cargo (or passengers).

**Offshore petroleum facility means a facility operating in accordance with the provisions of the *Offshore Petroleum and Greenhouse Gas Storage Act 2006* or any relevant state legislation. Industry contingency plans should include arrangements for transfer of control to DTP or appropriate State control agency and include provision of ongoing support under such circumstances.



3.4.6 Emergency Management Team

To ensure emergency management arrangements are scalable, Victoria has three operational tiers. Each tier has a controller who is supported by an EMT. Refer to the SEMP and the Emergency Management Team Arrangements (Dec) 2014 for detailed descriptions of the functions and membership at each EMT tier.

If an emergency requires a response by more than one agency, the controller at each tier is responsible for convening an appropriate EMT as soon as practical. An EMT can be virtual (e.g. teleconference) or at a location designated by the controller.

Tables 7 and 8 show examples of suggested EMT agency membership for different types of maritime emergencies.

Table 7. Example EMT agency memberships for maritime casualty incidents

Level 1 – Vessel casualty *(with minimal risk of oil pollution occurring)*	Level 2 / 3 – Vessel casualty *(with high potential risk of oil pollution occurring)*
Deployed to site or ICC:	Deployed to site or ICC:
• Port Management Body / Local Port Manager • Safe Transport Victoria • Victoria Police Water Police Squad (WPS)[1]	• Safe Transport Victoria • Port Management Body / Local Port Manager • EPA • DTP • Fire Services • Traditional Owner Representation • Victoria Police Water Police Squad (WPS)[1]
Notified with potential to deploy to site/ICC:	Notified with potential to deploy to site/ICC:
• DTP • EPA • RERC/MERC (Victoria Police) • AMSA • Fire Services • Traditional Owner Representation • Incident Health Commander (AV)	• RERC/MERC (Victoria Police) • AMSA Casualty Officer • DEECA (Wildlife) • Local Government • Incident Health Commander (AV)

1 If the vessel casualty incident involves a search and rescue component, the WPS will likely be on scene and coordinating in the first instance.

Table 8. Example EMT agency memberships for maritime-sourced oil pollution or hazardous materials incidents

Level 1 – Oil Pollution/hazardous materials on water/land	Level 2 / 3 – Oil Pollution/hazardous materials on water/land
Deployed to site or ICC:	Deployed to site or ICC:
• Control Agency • Port Management Body / Local Port Manager • EPA • Land management agency • Traditional Owner Representation	• Control Agency (DTP) • Port Management Body / Local Port Manager • EPA • Land management agency • DEECA (Wildlife) • Traditional Owner Representation
Notified with potential to deploy to site/ICC:	Notified with potential to deploy to site/ICC:
• DTP • AMSA • FIRE Service • RERC/MERC (Victoria Police) • DEECA (Wildlife) • Incident Health Commander (AV) • Australian Marine Oil Spill Centre (AMOSC)	• AMSA • Fire Services • RERC/MERC (Victoria Police) • Local Government • Incident Health Commander (AV) • AMOSC

State Control Team

The SCT for this subplan will be activated by the SCME, in consultation with the EMC, in the event of a possible or actual Level 2 or Level 3 incident.

Table 9 outlines the standing membership of the SCT. Meetings of the SCT may be held in person or virtually.

Table 9. SCT Membership

Incident level	Standing SCT	Other leads as determined by the SCME or EMC – include:
Level 2	• SCME (Chair) • EMC • SPLO • State Consequence Coordinator • State Emergency Relief Coordinator • DEECA State Agency Commander • EPA – Chief Environmental Scientist • Safe Transport Victoria	• DTP Executive Director Resilience and Emergency Coordination • Fire Agency Chief Officer or Commissioner (if hazardous materials or fire involved) • DEECA Chief Fire Officer (if wildlife involved) • State Health Commander (AV)
Level 3	All members of Level 2 plus; • MERCOM (AMSA) • DTP Executive Director Resilience and Emergency Coordination • Fire Agency Chief Officer • DEECA Chief Officer (or delegate: State Agency Commander)	• Support agencies - State Agency Commander (SAC)

Incident Management Team

Maritime emergencies involve many control agencies, particularly when they are large, complex or involve a range of hazards.

Where there are concurrent hazards within the one incident, guidance in Part B should be used to establish who should lead the IMT based on the highest order of hazard risk and consequence.

It is important for the AIIMS principle of *unity of command* to operate in terms of the IC forming the lead with the support of other agencies who will perform a support (command) function.

In the event of uncertainty or a conflict as to who should lead a Level 1 response, the SCME may determine this based on the hierarchy of risk and consequence and capabilities required of the IC. In the event of a Level 2 or 3 Incident, the SCME will appoint the IC.

Depending on the complexity, Deputy ICs may be appointed where the risk and/or span of control necessitates.

It is the responsibility of the IC to determine the most appropriate IMT structure to put in place, and to form an incident EMT if required.

For Level 1 incidents, beyond the initial assessment phase, if it is determined that deployment of personnel and/or resources is required, the IC should consider delegating the operations and public information functions.

For Level 2 and 3 incidents the IC will delegate each of the IMT functions and agency commanders form part of the IMT at the incident tier.

For a large or protracted maritime casualty or pollution response, the operations unit typically includes the following specialist operational functions: aviation, marine, shoreline, wildlife, waste and workplace health and safety. Maritime-sourced oil pollution response may also include a dedicated environment function within the intelligence unit and employs specialist environment, scientific and technical advisers at all levels of the IMT.

3.4.7 Appointment of Incident Controllers

The role of the IC is to provide leadership and management to resolve the emergency and operates in close proximity to the incident.

The IC has responsibility for the overall direction of tactical response and support activities at the incident level. For maritime emergencies, the responsibilities of the IC are consistent with those outlined in the SEMP.

A Deputy IC is an individual appointed under the same provisions as an IC, usually for Level 2 or 3 incidents. The Deputy IC supports the IC in the management of the incident.

For Level 1 incidents, the relevant control agency is responsible for:

- providing qualified personnel to undertake the role of IC
- appointing an appropriately trained IC for a given incident.

For Level 2 and 3 incidents, the SCME will:

- ensure they appoint qualified personnel to undertake the IC role for Level 2 and 3 incidents, in accordance with the EMV (Class 1) or AMSA (Class 2) frameworks
- appoint the IC and the Deputy ICs, which may initially be confirmed verbally and then confirmed by a written instrument of appointment.

3.4.8 Incident Control Point (ICP) and Incident Control Centre (ICC)

For Level 1 incidents, the IC is responsible for establishing an Incident Control Point (ICP). The ICP could be established on site or in a port office. However, if the level of the response escalates then a designated ICC, which can sustain a fully staffed IMT, should be established in proximity to the incident.

Level 2 and 3 Incidents are to be managed through an ICC or Regional Control Centre (RCC) approved by the SCME.

The location of the ICP or ICC in use should be clearly identified and communicated to all agencies.

3.4.9 Specialised support services

Any agency that has the skills, expertise or resources that may contribute to the management of a maritime emergency may be requested to assist in emergency response. Table 10 details some specialised support services that are available to assist an IMT with maritime emergencies.

Table 10. Specialist support services

Support Service	Primary Agency	Secondary Agency
Detection of emergency locator transmitters	AMSA	AIRSERVICES AUSTRALIA
Oil spill trajectory modelling	AMSA	
Mapping services/information including: • digital and hardcopy maps • aerial photography acquisition • GPS positioning and location	DTP DEECA	GEOSCIENCE AUSTRALIA
Investigation of pollution	EPA	

3.4.10 Related emergencies – agencies roles and responsibilities

Maritime emergencies (NSR) may be a result of a land-based emergency or result in the requirement for an on-land response that needs to be managed.

A range of agencies have defined control agency responsibilities (see Table 11) and depending on the emergency, a transfer of control to or from a maritime emergency (NSR) may be required. For example, pollution from land that enters state marine waters may require a joined-up approach.

Table 11. Control agencies for related incidents.

Emergency Type*	Control Agency *(May vary by location)*
Fire and explosion	CFA/FRV
Hazardous materials	CFA/FRV
Non-hazardous pollution of inland waters	DEECA
Public transport disruption (water taxis, ferries, etc.)	DTP
Tsunami, storm surge and other related natural events	VICSES

**This list is not exhaustive, refer to SEMP for details on specific control agencies for emergency types*

3.4.11 Control of incidents that cross control agency boundaries

Victorian agency control boundaries

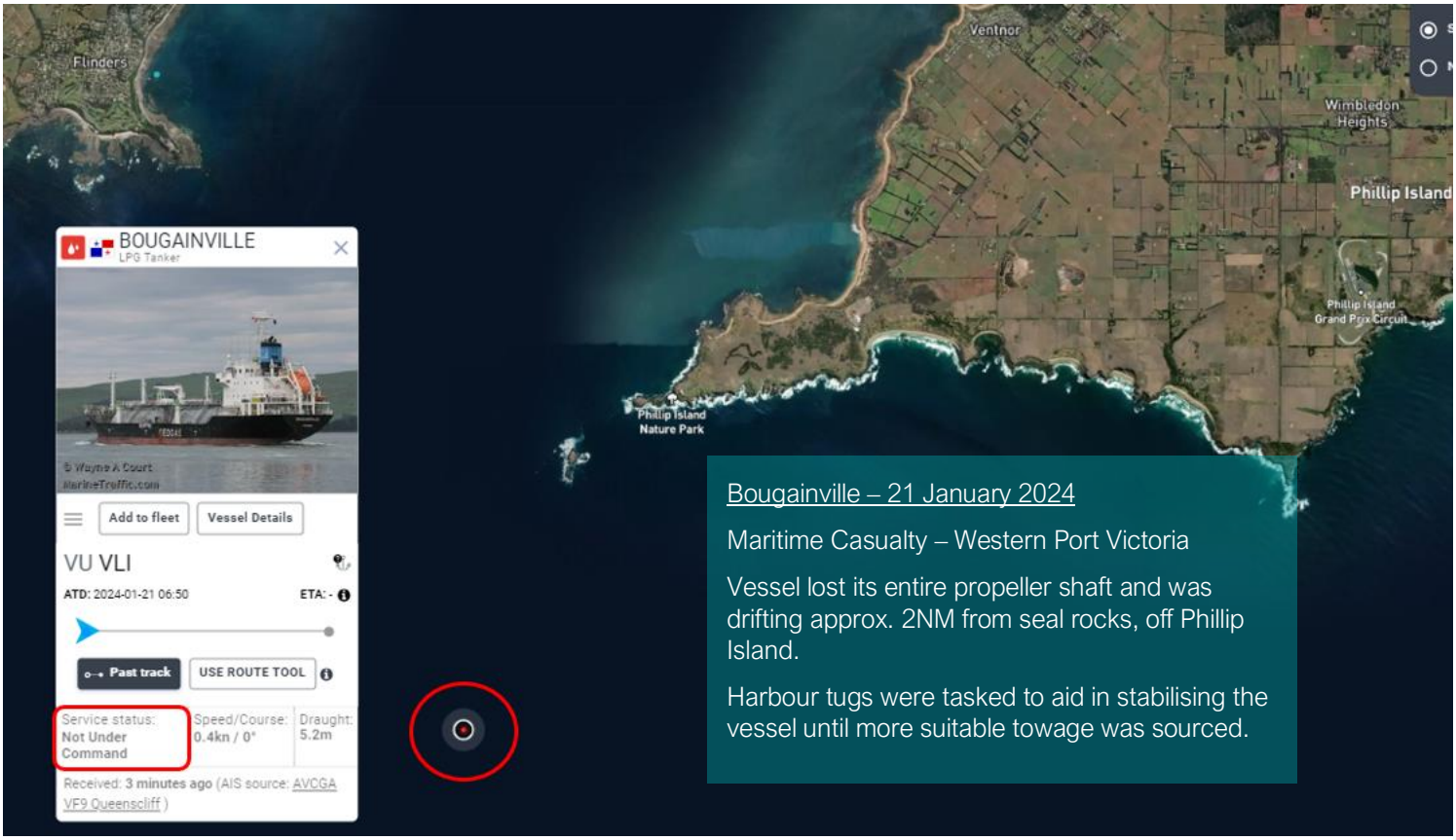
If a maritime emergency has the potential to cross the boundaries of two control agency areas DTP should be notified so they can inform and liaise with neighbouring jurisdictions. A single IMT should be established by the control agency of the jurisdiction in which the incident first occurred. As outlined in *3.2.5 Role of Coordination* if control agency jurisdiction is not clear, the Victoria Police RERC has the authority to appoint the control agency on behalf of the EMC.

If the incident is escalated beyond a Level 1 incident and control is transferred to DTP, both affected agencies will continue to provide support and local knowledge throughout the response.

State borders

For incidents which cross state borders, the SCMEs of impacted states will liaise and determine whether there is a need for separate ICC to be established in each state, based on risk assessments of the situation. The primary ICC may be established in the state where the impact is likely to be greatest, with all media communications originating from that centre in consultation with the neighbouring state.

The SCME and the IC, in consultation with the respective states, will determine if an interstate ICC needs to be established. The SCME will notify the EMC of any potential or actual cross-state activity.



3.5 Communications

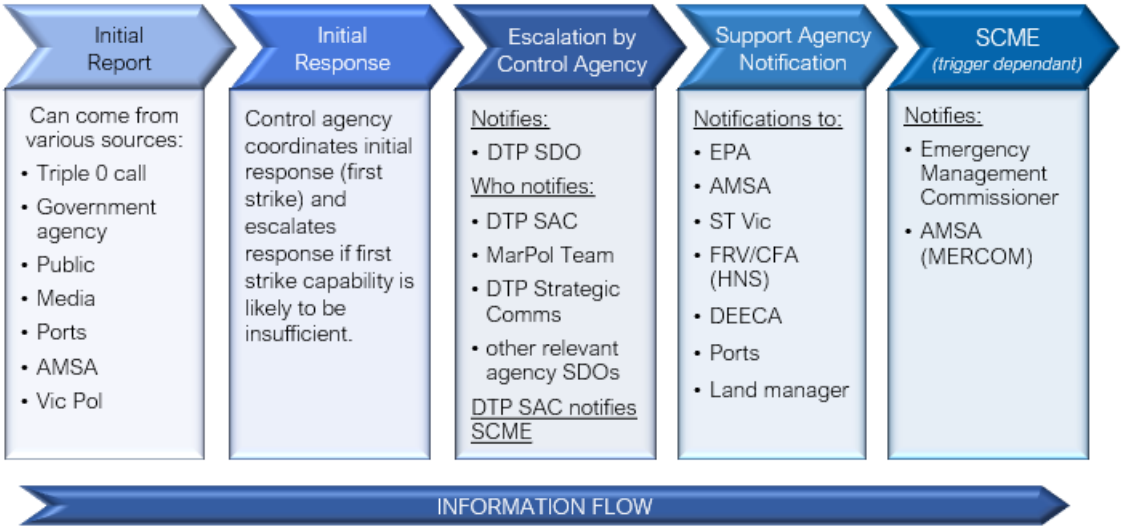
3.5.1 Notifications

Control agencies are required to maintain 24 hours a day, 365 days a year capability to receive third party reports of suspected maritime emergency incidents and be able to initiate a response without delay to reported incidents (e.g. first strike response capacity). Agencies should ensure they have capability to conduct an initial assessment in accordance with processes outlined in the Operational Plan (Part B).

If a maritime emergency is considered a major emergency under the *EM Act 2013,* or an incident is considered significant (e.g. high media interest, sensitive environmental issues) the SCME (or their representative) is responsible for notifying the EMC as outlined in Joint Standard Operating Procedure (JSOP) *3.16 Significant Event Notification.*

In the event of a Level 2/3 incident, additional notifications may be required by the SCME (Figure 7), to the State Control Centre (SCC) and other agencies who may be assisting with the response including neighbouring jurisdictions if the emergency is likely to cross shared borders.

Figure 7. Information flow and notification process for maritime casualty and maritime-sourced oil pollution incidents



NB: This figure is an example of the notification process and may not be exhaustive of all agencies in the process.

3.5.2 Critical information flow during an escalating or major emergency

The rapid, accurate information flow from the incident area upwards plays a critical role in enabling the appropriate resources to be made available. In addition to providing the critical data for strategic decisions being made regarding resources and incident management, information coming from the incident ground (especially the first arriving resources) is required to determine what advice or warnings need to be communicated to the community.

3.5.3 Emergency information and warnings

The IC is responsible for ensuring timely, tailored information is provided to the community.

When a maritime emergency occurs, the IC of the relevant control agency will ensure that public information and warnings (as necessary) are published to the Vic Emergency Website www.emergency.vic.gov.au and appropriate social media channels along with sending warnings to relevant emergency broadcasters.

The Vic Emergency website reports maritime emergencies under four categories depicted by the following icons:



Marine incident



Oiled Wildlife



Water Pollution



Port Closed

Where multiple hazards are presented, but it remains as one incident, the primary hazard will drive the warning type and icon that will be used.

During a major emergency (Level 2 or 3 incident) or where the SCME is activated, they will coordinate whole of government state-level messaging with the respective control agency (FRV, CFA, DTP, DEECA), and in collaboration with the Emergency Management Joint Public Information Committee (EMJPIC).

Emergency information and warnings should be:

- tailored to include specific details about the emergency and any likely or actual impacts on the community
- updated regularly or as the situation changes
- contain advice on protective or specific actions the community should undertake to remain safe
- provided through multiple channels including social media, news, radio, community meetings, newsletter, industry networks or other avenues as required

Where there are risks to public health from pollution, community information may be issued by or in consultation with the EPA and/or the Department of Health.

3.5.4 Common Operating Picture

The purpose of the COP is to build and maintain a common situational awareness among all agencies and personnel involved in the response to and resolution of an incident, and to support decision making and planning at all levels.

The COP is built and maintained by the intelligence unit through a collaboration process with all members of the IMT, EMT and other external sources. Where the intelligence unit is not established, the planning unit is responsible for maintenance of the COP.

The tools to be used for establishing a Common Operating Picture may include:

- Emergency Management - Common Operating Picture (EM-COP)
- National Emergency Maritime Operations (NEMO) system
- Situation Reporting (SITREP)

The use and application of these systems is described in the Operational Plan (Part B).

Capability and resource management

4.1 Responsibilities of maritime-sourced oil pollution control agencies

Each maritime-sourced oil pollution control agency should:

- ensure a sufficient number of personnel are available, 24 hours a day, 365 days of the year to initiate a response without delay to any report of an actual or suspected Level 1 maritime-sourced oil pollution or maritime casualty incident in their prescribed region (refer Appendix 2 and 3) in accordance with this subplan
- provide a trained IC for Level 1 incidents to take control of the incident and to:
    - establish an appropriate incident management and emergency management teams
    - ensure public safety including the issuing of relevant warnings and public information
    - manage response operations in accordance with the systems prescribed in this subplan
- work in collaboration with DTP regarding appropriate storage and access of specialist response equipment owned by the State for response to maritime emergencies, in accordance with arrangements detailed in Part B of this Plan.
- undertake regular readiness checks of specialist equipment and vessels owned and operated by control agencies.
- for maritime-sourced oil pollution control agencies, maintain an up to date register as prescribed by DTP, of all material vessels (including vessels of opportunity), property and equipment and other assets in its possession or control, which are capable of being used to support an emergency response.

4.1.1 State Response Team (SRT)

The SRT is comprised of personnel specially trained in various aspects of maritime emergency response. Personnel come from a range of emergency management agencies, local government authorities, and other government departments. DTP coordinates the training of SRT personnel through AMSA, under National Plan arrangements (see section 4.2 Capability development for more information on the SRT).

4.1.2 National Response Team and Specialist Equipment Caches

Requesting National Plan resources

On activation of the National Plan, the IC or the SCME may submit a request to AMSA for personnel from other states or the Northern Territory and the Australian Marine Oil Spill Centre (AMOSC) Core Group to assist with the incident response, in IMT/EMT or field roles. Suitable personnel will be selected by AMSA from the National Response Team (NRT), National Response Support Team (NRST) and AMOSC Core Group unless special circumstances exist. AMSA manages nine stockpiles of specialist response equipment and dispersants, including one in Melbourne. AMOSC has four stockpiles, with one in Geelong that also includes wildlife treatment equipment.

The SCME may request national resources through AMSA if:

- the incident has exceeded the state's capacity to respond
- the incident requires a resource that can only be obtained nationally and/or
- the incident is a Level 3 spill requiring immediate escalation.

If national assistance is requested, the EMC is to be notified and the control agency is responsible for ensuring that there are appropriate arrangements in place to enable support agencies to be reimbursed for the costs incurred in responding to an incident, consistent with the National Plan. Requests for NRT activation or for specialist equipment should initially be made through the AMSA Joint Rescue Coordination Centre (JRCC) in accordance with the Operational Plan (Part B).

AMSA and individual states and the Northern Territory, can also request resources and equipment from AMOSC and other industry and international resources if required.

Providing assistance to other jurisdictions

Under the National Plan, AMSA can request Victoria's assistance for maritime casualties and pollution outside Victorian state waters through the SCME. The SCME will consult with the EMC before deploying any Victorian personnel or assets to another jurisdiction.

AMSA may also request that Victoria assumes control of an incident originating from a vessel in Commonwealth waters, if:

- the spill is likely to impact the Victorian shoreline
- AMSA personnel are in transit to the location of the incident or
- it is more practical to have the state respond on behalf of AMSA.

Victoria may receive a request for assistance directly or via AMSA from an offshore facility operator located in Commonwealth waters:

- when a spill is likely to enter state waters
- when an incident has exceeded the operator's capacity to respond
- as per agreed arrangements set out in the operator's Oil Pollution Emergency Plan

AMSA's Coordination of cross-border incidents guidance (NP-GUI-023) provides further details.

4.1.3 International Assistance

AMSA can make arrangements with other countries such as New Zealand and Singapore that have specialist resources and personnel that could support major or complex maritime emergencies.

4.2 Capability development

4.2.1 Training standards

Effectively managing a response to a maritime emergency incident requires technical proficiency acquired through training and experience.

SRT members attend training and exercises in accordance with the SRT training schedule to maintain their skills in maritime pollution response. Further information is available in the Operational Plan (Part B).

The training schedule includes accredited courses for Level 1 incidents, including equipment operation, shoreline response, and functional roles within the AIIMS structure. Control agencies and

other partner agencies provide training for specialised roles such as hazardous materials, wildlife response, waste management and aerial observation.

Training for Level 2 and 3 incidents is provided by AMSA's national training program, in accordance with the Australian Qualifications Framework. This includes specialised training for:

- Incident Management Teams
- Logistics Officer
- Operations Officer
- Planning Officer (including Mapping)
- Incident Controller
- Basic Equipment Operator
- Advanced Equipment Operator
- Shoreline Team Leadership

AMSA also delivers an annual specialist workshop for ESTRG advisors.

As part of the National Plan arrangements, AMOSC provides oil spill response training for the petroleum industry and is accredited to conduct IMO equivalent level I, II and III, Oil Pollution Preparedness, Response and Co-operation (OPRC) training.

DTP maintains a training database of SRT members from all control and support agencies who undertake courses to ensure that Victoria has access to appropriately trained staff to respond to maritime emergencies and that their accreditations are current.

4.2.2 Exercising and evaluation

Victoria's maritime emergency response plans are exercised regularly to:

- continually assess the efficacy of the arrangements
- identify opportunities to improve incident response arrangements
- establish and strengthen relationships across relevant response agencies
- ensure stakeholders have a thorough and common understanding of:
    - command, control, and coordination arrangements
    - roles and responsibilities of stakeholder agencies
    - maritime-sourced oil pollution response procedures, issues, and considerations.

When the state arrangements are exercised, the exercises will be evaluated and where improvements to the emergency management arrangements in this Sub-Plan are identified, the Sub-Plan will be reviewed, and a revised version issued. Exercises will be conducted in accordance with the *Framework for Managing Exercises in Victoria* (available on EM-COP) and the National exercising standard (*the Australian Emergency Management Handbook 3* - Managing Exercises 2023, prepared by the Australian Institute for Disaster Resilience).

Each control agency is requested to provide one or more participants that can engage at a state strategic level for an annual state exercise.

National exercises

NRT and SRT members will have the opportunity to participate in national exercises coordinated by AMSA and AMOSC on an annual basis.

Control agency exercises

To support the arrangements in this Sub-Plan, it is recommended that each control agency:

- conduct an internal agency exercise annually, to test their capability related to their area of control
- provide trained incident management capability to manage responses to Level 1 incidents within their region and provide support for Level 2 and 3 incidents
- participate in state or national exercise opportunities
- maritime-sourced oil pollution control agencies are required to plan and conduct an annual exercise to test their first-strike response capability
    - DTP will support the planning, conducting, observing and evaluation of first strike capability and regional exercises
    - exercises should include participation of key support agencies and regional stakeholders.

4.2.3 Operational debriefing

Incident debriefing and After-Action Reviews (AAR) form part of the continuous improvement cycle of emergency operations. DTP as the state control agency will organise operational debriefs or AARs with participating agencies (including recovery agencies) as soon as practicable after cessation of any response activities that apply to this subplan. Debriefing provides an opportunity to evaluate the adequacy of the response and to recommend changes to plans and procedures to improve future operational response activities.

Appendices

5.1 Appendix 1 - Authorising legislation

5.2 Appendix 2 - Victoria's commercial trading ports

5.3 Appendix 3 - Victoria's local ports

5.4 Appendix 4 - Jurisdictional boundaries and maps

5.5 Appendix 5 - Glossary

5.6 Appendix 6 - Acronyms



5.1 Appendix 1 - Authorising legislation

International conventions

Australia is a signatory to two international conventions for preventing and responding to ship-sourced pollution:

- The International Convention on Oil Pollution Preparedness, Response and Cooperation (OPRC) commonly known as OPRC 90), and its associated Hazardous and Noxious Substances Protocol, is the primary international convention for response to ship-sourced marine oil pollution.
- The International Convention for the Prevention of Pollution from Ships 1973 (MARPOL) (as modified by the Protocol of 1978) is designed to minimise pollution of the seas by oil and other harmful substances from ships and preserve the marine environment.

Relevant national and international protocols, conventions, and arrangements

International Convention	Scope
International Convention on Pollution Preparedness, Response and Cooperation (OPRC) 1990 (IMO) *Related Protocol:* Protocol on Preparedness, Response and Cooperation to Pollution Incidents by Hazardous and Noxious Substances 2000, (OPRC-HNS Protocol)	Provides the basis for Maritime Emergency response (NSR) by setting the context for: • developing a state system for pollution response • maintaining adequate capacity and resources to address oil and HNS incidents. • facilitating cooperation across all jurisdictions • immediate notification of all neighbouring jurisdictions likely to be impacted.
International Convention for the Prevention of Pollution from Ships (MARPOL) 1973 (IMO)	• Provides ships' construction and operational requirements to prevent pollution from ships. • Requires ships greater than 400 tonnes gross to have pollution emergency plans. • Requires mandatory reporting of oil spills. • Provides for exemptions from discharge restrictions where: ○ a discharge is necessary to secure the safety of a ship or to save a life at sea ○ it is necessary during a spill response to minimise the overall damage from pollution and is approved by the relevant government. This includes dispersants.
United Nations Convention on the Law of the Sea 1982	Article 211 provides general powers for parties to take and enforce measures beyond territorial sea to protect their coastline or related interests from pollution or threat of pollution following a maritime casualty or acts relating to such a casualty that may reasonably result in major harmful consequences. Article 198 provides that 'when a State becomes aware of cases in which the marine environment is in imminent danger of being damaged…by pollution, it shall immediately notify other (neighbouring) States it deems likely to be affected by such damage.'
IMO. International Convention Relating to Intervention on the High Seas in Cases of Oil Pollution Casualties 1969 *Related Protocol:* IFRC Protocol Relating to Intervention on the High Seas in Cases of Pollution by Substances Other than Oil 1973	This convention provides general powers for parties to take measures on the high seas as may be necessary to prevent, mitigate or eliminate grave and imminent danger to their coastline or related interests from the threat of pollution by oil or hazardous and noxious substances following a maritime casualty or acts related to such a casualty that may reasonably be expected to result in major harmful consequences.
International Convention on Civil Liability for Oil Pollution Damage 1992	Provides for the recovery of pollution costs and payment of compensation from owners/operators of oil tankers.

International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage 1992	Provides for additional compensation and costs where the tanker owner/operators' liability limits are exceeded, using funds provided by the oil industry. *Related Protocol:* IMO. Protocol of 2003 to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992
International Convention on Civil Liability for Bunker Oil Pollution Damage 2001	Provides for the recovery of pollution costs and payment of compensation from owner/operators of all vessels using oil as bunker fuel.
Guidelines on International Offers of Assistance (IOA) in response to a marine oil pollution incident	Provides guidance on requesting and accepting offers of assistance from other nation states. While these guidelines can play an important role in the implementation of the OPRC 1990 Convention, they are not prescriptive or legally binding, and are meant as a tool to assist as needed.
Resolution A.949 (23) Guidelines on Places of Refuge for Ships in Need of Assistance 2003 and A.950(23) Maritime Assistance Services 2003	These Resolutions provide guidance on places of refuge for ships and on the provision of a Maritime Assistance Service (MAS) to ships that may need assistance, where the safety of life or rescue of persons is not involved.

Relevant Commonwealth legislation

Commonwealth Legislation	Scope
Australian Maritime Safety Authority Act 1990	Provides that a function of AMSA is to combat pollution in the marine environment, including provision of services to the states and territories.
Protection of the Sea (Prevention of Pollution from Ships) Act 1983	Provides exemptions for the discharge of materials in response to marine pollution incidents. This includes the application of dispersants. Requires ships greater than 400 tonnes gross to have pollution emergency plans. Provides for emergency discharges from ships.
Offshore Petroleum and Greenhouse Gas Storage Act 2006	Sets out the requirements for the offshore petroleum exploration and production sector. Part 6.2 provides for the National Offshore Petroleum Safety and Environmental Management Authority (NOPSEMA) or the Commonwealth Minister to direct the polluter to take actions in response to an incident and to clean up, monitor impacts and reimburse NOPSEMA or the Commonwealth.
Environment Protection and Biodiversity Act 1999	Regulates activities impacting on defined "matters of national environmental significance", Commonwealth marine reserves, and species listed under the Act. Provides for the making of exemptions if in the national interest. An exemption has been issued for activities done pursuant to the National Plan.
Protection of the Sea (Civil Liability for Bunker Oil Pollution Damage) Act 2008	Places liability on the shipowner(s) for pollution damage caused by loss of bunker fuel. Provides immunity from legal action for response personnel.
Protection of the Sea (Civil Liability) Act 1981	Places liability on the shipowner(s) for pollution damage caused by loss of persistent oil from an oil tanker.
Protection of the Sea (Oil Compensation Fund) Act 1993	Provides additional compensation for pollution damage caused by loss of persistent oil from an oil tanker.
Protection of the Sea (Powers of Intervention) Act 1981	Provides for intervention powers being exercised in Australia's EEZ, Territorial Sea and internal waters.
Fisheries Management Act 1991	Provides regulatory and other mechanisms to support any necessary fisheries management decisions during a response in Commonwealth waters.

National arrangements

Maritime emergency (NSR) arrangements are supported by intergovernmental agreements and set out in the National Plan.

Through intergovernmental agreements, all jurisdictions have undertaken to provide a response capability within their own jurisdiction and share resources with other jurisdictions. The Commonwealth, through the AMSA coordinates National Plan arrangements.

The National Plan provides a single comprehensive and integrated response arrangement to minimise environmental impacts arising from maritime environmental emergencies.

The national arrangements do not override state legislation, except for specific provisions relating to a maritime casualty that poses a threat of significant pollution.

Victorian legislation

Victorian Legislation	Scope
Emergency Management Act 2013	Defines key elements of Victoria's emergency management structure, assigns significant roles and responsibilities, and provides clear accountability regarding the management of major emergencies. Provides the integrated arrangements for emergency management planning, including mitigation, response, relief and recovery planning, involving preparedness, operational co-ordination, and community participation, in relation to all hazards.
Emergency Management Act 1986	Operates concurrently with the *Emergency Management Act 2013* with the intention that the 1986 Act will ultimately be repealed. Currently, the 1986 Act and 2013 Act are to be read and construed as one Act.
Marine (Drug, Alcohol and Pollution Control) Act 1988 (Marine Act)	Defines prohibited discharges. Defines the powers of DTP regarding oil pollution response and preparedness. Allocates roles and responsibilities to ensure there is a capacity and obligation to respond to marine incidents that have the potential to result in pollution. Section 71A sets out functions to ensure adequate means exist to respond to marine pollution in Port and State waters.
Marine Safety Act 2010	Provides for safe marine operations within Victoria by setting licensing and operational requirements. Provides powers to police to enforce the safety of vessel operators and to Office of the Director Transport Safety staff to enforce vessel safety. Also gives police powers to check vessel owners/operators.
Environment Protection Act 2017	Provides the foundation for a transformation of Victoria's environment protection laws and Environment Protection Authority Victoria (EPA). The general environmental duty (GED) is at the centre of the Environment Protection Act 2017, and it applies to all Victorians, and all businesses located in Victoria. The Act focuses on preventing waste and pollution, rather than managing impacts after they occur. The GED is criminally enforceable.
Pollution of Waters by Oil and Noxious Substances Act (POWBONS) 1986	POWBONS and POWBONS Regulations 2012 make provisions for the protection of the sea and certain waters from pollution by oil and other noxious substances and implement the International Convention for the Prevention of Pollution from Ships (1973). Prohibits discharge of oil, oily mixtures, and other materials. Implements Annex 1 of the MARPOL Convention. Requires mandatory reporting of marine pollution incidents.

Offshore Petroleum and Greenhouse Gas Storage Act 2010	Sets out the requirements for the offshore petroleum exploration and production sector in Victorian offshore waters.
Flora and Fauna Guarantee Act 1988	Provides for the conservation and biodiversity of Victoria's native flora and fauna, including the management of potentially threatening processes.
Wildlife Act 1975	Provides for the protection and conservation of wildlife.
Fisheries Act 1995	Provides for the regulation, management and conservation of Victorian fisheries (both commercial and recreational), including aquatic habitats.
Wildlife (Marine Mammals) Regulations 2009	Provides for the long-term protection of marine mammals.
Local Government Act 1989	Provides a framework for the operation of local councils. Provision in local plans for prevention, preparation for, response to and recovery from emergency incidents, including: • management of local infrastructure and community assets • liaison with local communities and business networks • enforcement of relevant local laws, such as access control, parking, safety, pets.
Local Government Act 2020	The Local Government Act 2020 is a principles-based Act, removing unnecessary regulatory and legislative prescriptions outlined in the previous 1989 Act. The Act provides under section 87 for the Minister for Local Government to issue Ministerial Good Practice Guidelines (MGPGs).
Port Management Act 1995	Provides for the establishment, management and operation of commercial trading ports and local ports in Victoria and the preparation of Safety Management Plans and an Environment Management Plans (together known as Port *Safety & Environmental Management Plans* (PortSEMPs) and Part 5B refers to hazardous or polluting activities.
Aboriginal Heritage Act 2006	Provides for the protection of Aboriginal cultural heritage in Victoria.
Heritage Act 1995	Provides for the protection and conservation of places and objects of heritage significance.
Marine and Coastal Act 2018	The *Marine and Coastal Act 2018* provides a simpler, more integrated and coordinated approach to planning and managing the marine and coastal environment by enabling protection of the coastline and the ability to address the long-term challenges of climate change, population growth and ageing coastal structures.

5.2 Appendix 2 - Victoria's commercial trading ports

Ports Victoria, established on 1 July 2021 have overarching responsibility for the channels and port waters of Victoria's commercial ports. The Victorian Commercial Ports Strategy is a key response to the Independent Review of the Victorian Ports System, actioning the industry desire for a State-wide vision for the sector.

Victoria's four commercial trading ports are profiled below:

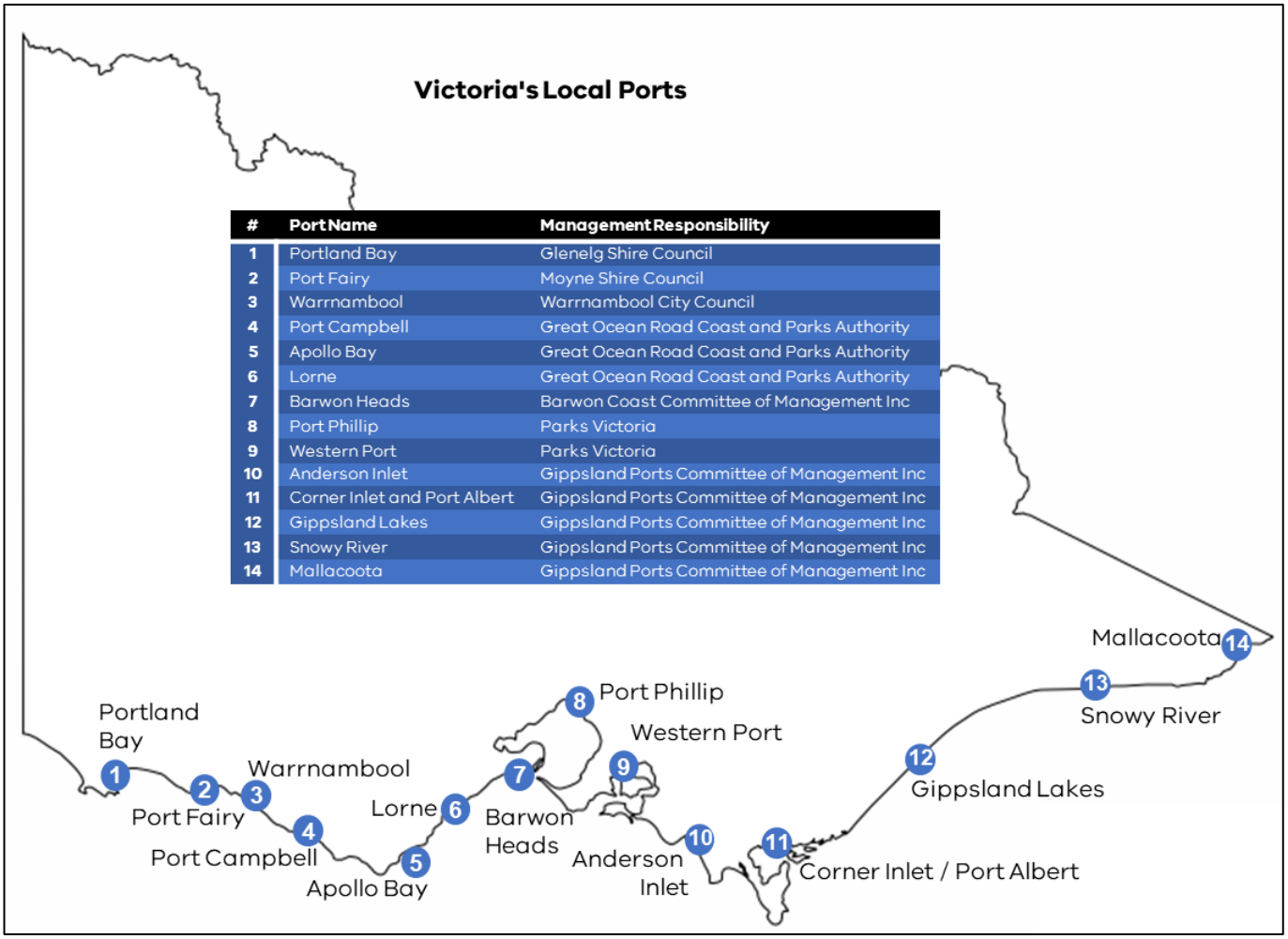
- **Port of Melbourne** is Australasia's largest maritime hub for containerised, automotive and general cargo. It is a key economic asset for businesses and people across Victoria and south-eastern Australia. The Port of Melbourne welcomes over 7,500 vessel movements annually and comprises of 100,000 hectares of port waters, 21 kilometres of waterfront and 36 commercial berths.

- **Port of Geelong** is Victoria's second largest port, handling over $7 billion of trade and more than 1,000 vessel visits each year. The Port's exports consist mainly of raw materials, including petroleum products, bulk and bagged grain and woodchips, while the majority of imports are crude oil, petroleum products and fertiliser raw material. While Geelong Port manages wharf and land-side infrastructure, Ports Victoria is responsible for channel management and commercial navigation of commercial waters in and around Geelong.

- **Port of Hastings** is a commercial port, handling approximately 2 million tonnes of trade each year, and servicing major international and domestic shipping movements that include import and export of oil, LPG, ULP, steel, general and project cargo. The Port of Hastings Corporation (PoHC), as Port Operator is responsible for managing the operations at the Port of Hastings, including maintaining the associated port infrastructure (except for the BlueScope owned steel wharves). The channels are managed by Ports Victoria.

- **Port of Portland** is a deep-water port servicing the forest production area of Victoria and South Australia known as the Green Triangle Region. The Green Triangle is centered on Portland, Mt Gambier and beyond. The Port has six commercial berths and handles over 7 million tonnes of trade and welcomes more than 300 vessel visits annually. Its main commodities are grain, forestry products including woodchips, aluminum, alumina, liquid pitch, fertiliser and mineral sands.

5.3 Appendix 3 - Victoria's local ports



#	Port Name	Management Responsibility
1	Portland Bay	Glenelg Shire Council
2	Port Fairy	Moyne Shire Council
3	Warrnambool	Warrnambool City Council
4	Port Campbell	Great Ocean Road Coast and Parks Authority
5	Apollo Bay	Great Ocean Road Coast and Parks Authority
6	Lorne	Great Ocean Road Coast and Parks Authority
7	Barwon Heads	Barwon Coast Committee of Management Inc
8	Port Phillip	Parks Victoria
9	Western Port	Parks Victoria
10	Anderson Inlet	Gippsland Ports Committee of Management Inc
11	Corner Inlet and Port Albert	Gippsland Ports Committee of Management Inc
12	Gippsland Lakes	Gippsland Ports Committee of Management Inc
13	Snowy River	Gippsland Ports Committee of Management Inc
14	Mallacoota	Gippsland Ports Committee of Management Inc

Location of local ports (correlating table numbers show management responsibility)

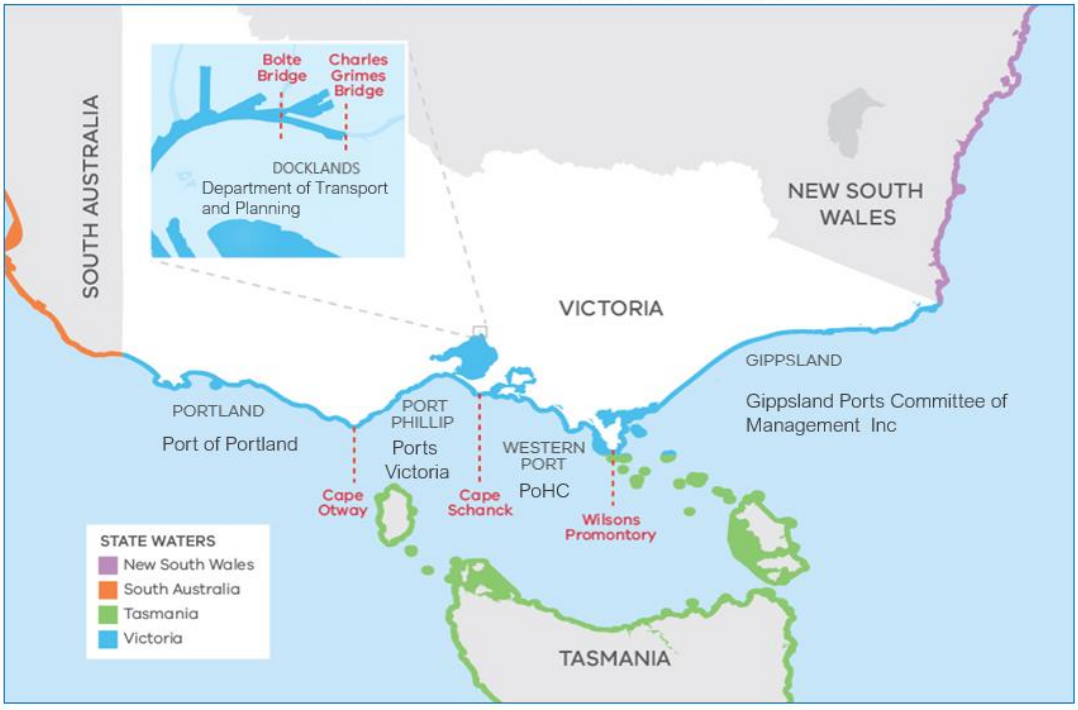
5.4 Appendix 4 - Jurisdictional boundaries and maps

Victoria's Control Agency boundaries for first response/Level 1 maritime-sourced oil pollution incidents are outlined in the table below and visually represented in the following map.

Victoria's control agency boundaries for first response/Level 1 maritime-sourced oil pollution incidents.

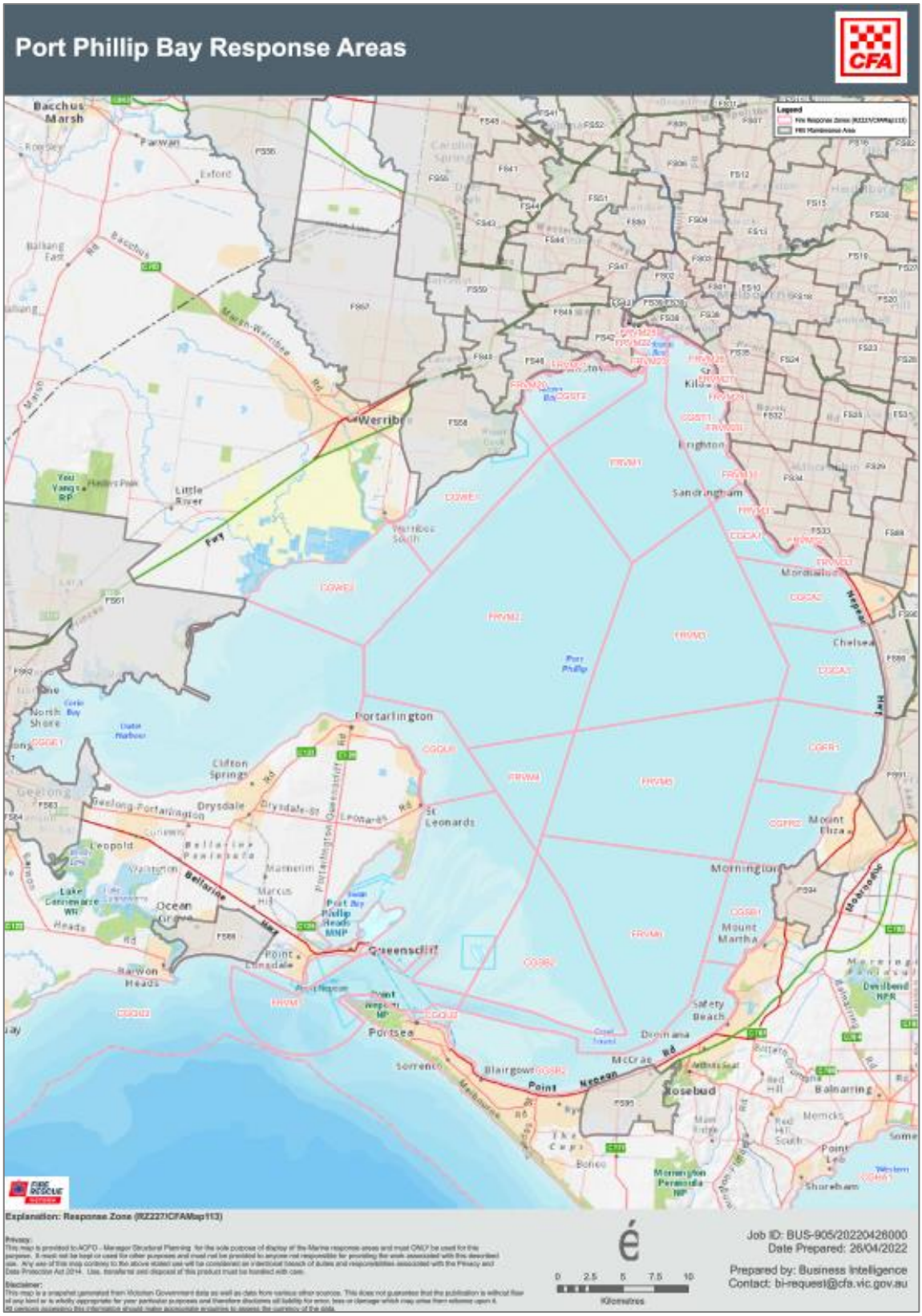
Region	West Boundary	East Boundary	Includes	Regional Control Agency (RCA)
Portland	SA Border	Cape Otway	Enclosed waters.	Port of Portland Ltd
Port Phillip	Cape Otway	Cape Schanck	Port Phillip, enclosed waters and upstream, where pollution is sourced from port waters. For Yarra and Maribyrnong Rivers, includes waters downstream of the Bolte and Shepherd Bridge.	Ports Victoria
Docklands	Charles Grimes Bridge	Bolte Bridge	Docklands includes waters upstream of the Bolte Bridge and downstream of the Charles Grimes Bridge.	DTP
Western Port	Cape Schanck	South-east point of Wilson's Promontory	Western Port and enclosed waters.	Port of Hastings Corporation
Gippsland	South-east point of Wilson's Promontory	NSW Border	Corner Inlet and enclosed waters.	Gippsland Ports Committee of Management Inc

Support Boundaries for Level 1 (first strike) maritime-sourced oil pollution responses



FRV/CFA Hazardous materials incidents marine jurisdictions

FRV and CFA have different jurisdictional boundaries for hazardous materials response which are shown below.



5.5 Appendix 5 - Glossary

TERM	DESCRIPTION
Aboriginal cultural heritage	As per the *Aboriginal Heritage Act 2006* Aboriginal places, Aboriginal objects and Aboriginal ancestral remains
Agency	A government agency or a non-government agency
AMOS Plan	*As per the National Plan* A plan managed by Australian Marine Oil Spill Centre (AMOSC) and outlines the cooperative arrangements for response to oil spills by Australian oil and associated industries.
Bunker	*As per the National Plan* a heavy fuel oil, intermediate fuel oil, blended distillate or diesel used as a vessel's fuel.
Bunkering operations	Means the transfer between a vessel and a barge, other vessel or road tanker, including all activities preparatory and incidental to the transfer, of the following: • flammable and combustible fuel for main propulsion and auxiliary operations • lubricating and hydraulic oil for machinery • waste oils, sludge and residues • slops and tank washings • grey water and sewage.
Class 1 Emergency	*As per Emergency Management Act* 2013 section 3 (a) a major fire; or (b) any other major emergency for which Fire Rescue Victoria, the Country Fire Authority or the Victoria State Emergency Service Authority is the control agency under the State Emergency Response plan.
Class 2 Emergency	*As per Emergency Management Act* 2013 section 3 A major emergency which is not – (a) A Class 1 emergency; or (b) A warlike act or act of terrorism, whether directed at Victoria or a part of Victoria or at any other State or territory of the Commonwealth: or (c) A hi-jack, siege, or riot (relates to major emergency of pollution/maritime casualty and H&NS)
Class 3 Emergency	As per the SEMP A warlike act or act of Terorism, whether directed at Victoria or part of Victoria or at any other State or Territory of the Commonwealth, or a hijack, siege, or riot.
Chemical terminal	*As per the National Plan* a chemical refinery and/or chemical storage/distribution facilities with access to a maritime facility, but not including the maritime facility.
Command	*As per the National Plan* the internal direction of the members and resources of an agency in performance of the organisation's roles and tasks. Command operates vertically within an organisation.
Commonwealth waters	all waters in the territorial sea and EEZ seaward of 3 nautical miles from Australia's baselines.
Community	*As per the National Plan*

	a group with a commonality of association and generally defined by location, shared experience or function
	As per the Emergency Management Act 2013 the coordination of agencies, including agencies who engage the skills and services of non-government organisations, which are responsible for managing or regulating services or infrastructure which is, or may be, affected by a major emergency.
Control	*As per the National Plan* the overall direction of emergency management activities during an emergency event. Authority for control is established in legislation or administratively and carries with it the responsibility for tasking organisations in accordance with the needs of the situation.
Control Agency	the agency or company assigned by legislation (*Emergency Management Act 2013*), administrative arrangements or within the relevant contingency plan, to control response activities for a maritime environmental emergency. The Control Agency will have responsibility for appointing one or more Controllers for maritime emergencies. This is the equivalent of Responsible Agency or Control Authority under AIIMS.
Coordination	*As per the National Plan* means the bringing together of organisations and other resources to support an emergency management response.
Emergency	*As per Emergency Management Act section 2* an event, actual or imminent, which endangers or threatens to endanger life, property or the environment, and which requires a significant and coordinated response. The term emergency and disaster are used interchangeably within the Australian Emergency Management Arrangements.
Environment	*As per the National Plan* the complex of physical, chemical and biological agents and factors which may impact on a person or a community, and may also include social, physical and built elements, which surround and interact with a community.
First Strike	*As per the National Plan* a prompt initial response to protect the environment that is intended to limit the effect of an incident until such time as other resources can be deployed in support. This capability may vary from location to location.
Habitat	*As per the National Plan* the natural home or environment of an animal, plant or other organism.
Harbour Master	*As per the Marine Safety Act 2010 section 3* (a) a licensed harbour master; or (b) any person authorised under section 229 to exercise any of the functions of the harbour master, if the person so authorised is acting in accordance with the authorisation.
Hazardous and noxious substance (HNS)	*As per the National Plan* any substance which, if introduced into the marine environment, is likely to create hazards to human health, to harm living resources and marine life, to damage amenities or to interfere with other legitimate uses of the sea.
Hazardous materials	*As per the SEMP* For the purposes of the SEMP, 'hazardous' is defined as any contaminants or materials that are harmful to human health (including substances that are dangerous goods as defined by *Dangerous Goods Act 1985*), and 'non-hazardous' is defined as any contaminants or materials (not identified as 'hazardous') that are not harmful to human health (noting these may be harmful to the environment and/or biodiversity (including plants and animals)). Where there is any doubt, contaminants or materials are to be deemed hazardous until such time as the Control Agency or support agency confirm they are non-hazardous

Incident	*As per the National Plan* An event, occurrence or set of circumstances that: • Has a definite spatial extent. • Has a definite duration. • Calls for human intervention. • Has a set of concluding conditions that can be defined. • Is or will be under the control of an IC appointed to make decisions to control and coordinate the approach, means and actions taken to resolve the incident.
Incident Controller	*As per the National Plan* the individual responsible for the management of all incident control activities across an incident.
Incident Management Team	*As per the National Plan* The group of incident management personnel comprised of the Incident Controller and personnel appointed by the Incident Controller to be responsible for the overall control of the response to an incident.
Industry	*As per the National Plan* Unless already specified or defined in a particular context, means a business or commercial group or sector, or other socially valuable activity, such as fisheries, tourism, infrastructure, transport etc. and their representative groups.
Incident Reports	Situation reports, Pollution reports and Agency reports required under the Operational Plan (Part B).
Internal waters	*As per the National Plan* those waters that fall within the constitutional boundaries of the State. The waters which are capable of falling within these limits are described in s.14 of the Seas and Submerged Lands Act 1973 as 'bays, gulfs, estuaries, rivers, creeks, inlets, ports or harbours which were, on 1 January 1901, within the limits of the States and remain within the limits of the States'.
Local port	means a port declared to be a local port by Order in Council under section 6 of the Port Management Act 1995.
Local port manager	For the purposes of this subplan 'local port manager' refers to the organisations with local port management responsibility outlined in Appendix 3.
Marine pollution	*As per the National Plan* Refers to any occurrence or series of events with the same origin, including fire and explosion, which results or may result in discharge, release or emission of oil or a hazardous and noxious substance, which poses or may pose a threat to the marine environment, the coastline, animals or other resource, and which requires an emergency action or immediate response. Under this plan, marine pollution refers primarily to situations that may arise from shore-based oil and chemical transfer facilities, shipping operations and/or the operation of an offshore petroleum facility.
Maritime casualty	*As per the National Plan* a collision of vessels, stranding or other incident of navigation, or other occurrence on board a vessel or external to it resulting in material damage or imminent threat of material damage to a vessel or cargo.
Maritime emergency	Potential and actual pollution of the sea or harm to the marine environment by oil or hazardous and noxious substance, originating from: • Maritime casualties requiring salvage and intervention, emergency towage and requests for a place of refuge. • Oil pollution or hazardous and noxious substance pollution incidents from vessels, oil or chemical terminals and offshore petroleum activities. • Marine pollution from floating or sunken containers of hazardous materials, or from unknown sources. • Debris originating from a maritime casualty, or physical damage caused by vessels.
Maritime facility	*As per the National Plan* a wharf or mooring at which a vessel can be tied up during the process of loading or unloading a cargo (or passengers). A maritime berth may be a sole user berth (such as a dedicated berth for an oil refinery) or may be a multiuser berth, such as a berth that handles general cargo, or one that handles bulk liquids such as petroleum for more than one user of the berth (sometimes known as a common-user berth).

Maritime-sourced oil pollution	Oil pollution that is spilled from a maritime based source eg. vessel, platform
Offshore petroleum facility	*As per the National Plan* a facility operating in accordance with the provisions of the *Offshore Petroleum and Greenhouse Gas Storage Act 2006*, or any relevant State/Northern Territory legislation.
Offshore Petroleum Incident Coordination Framework	Outlines the governance arrangements for the Offshore Petroleum Incident Coordination Committee (OPICC), including its purpose, membership and key protocols for member agencies. The OPICC is convened and chaired by the Department of Industry, Science and Resources. The purpose of the OPICC is to draw together expertise and capability from across government to guide strategic Commonwealth Government leadership in responding to a significant offshore petroleum incident originating in Commonwealth waters.
Oil	*As per the Pollution of Waters by Oils and Noxious Substances Act*, oil and oily mixture have the same meanings as in Annex I to the Convention *As per the National Plan* hydrocarbons in any liquid form including crude oil, fuel oil, sludge, oil refuse, refined products and condensates.
Oil terminal	*As per the National Plan* a petroleum refinery and/or petroleum storage/distribution facility with access to a maritime facility, but not including the maritime facility.
Petroleum	*As per the National Plan* includes oil and other substances extracted in the recovery of such substances, including LNG and LPG.
Pilot	*As per Marine Safety Act 2010* a person who does not belong to, but has the conduct of, a vessel.
Place of refuge	*As per the National Plan* a place where a ship in need of assistance can take action to enable it to stabilise its condition and reduce hazards to navigation, and to protect human life and the environment.
Port	*As per Marine (Drug, Alcohol and Pollution Control) Act 1988* Part 1, includes any of the following waters, or any part of those waters: (a) any harbour or haven, whether natural or artificial; (b) any estuary, channel, river, creek or roadstead; (c) any navigable water in which vessels may lie for shelter or for the transfer of cargo or passengers;
Ports Victoria	Government organisation focused on navigational safety and leading the strategic development and operation of Victoria's commercial ports and waterways. Also a Level 1 response control agency for maritime-sourced oil pollution.
Port Management Body	*As per Marine Safety Act 2010*, *port management body* means - (a) in relation to the port of Melbourne, Ports Victoria when it is performing functions and exercising powers in the port of Melbourne; (b) in relation to— (i) the waters declared under section 5 of the Port Management Act 1995 to be the port of Geelong, Ports Victoria, or, if there is an agreement with a channel operator in relation to those waters, that channel operator; (ii) the waters declared under section 5 of the Port Management Act 1995 to be the port of Portland, Ports Victoria, or, if there is an agreement with a channel operator in relation to those waters, that channel operator; (iii) port of Hastings waters, Ports Victoria, or, if there is an agreement with a channel operator in relation to those waters, that channel operator;
Protection of the Sea Levy	*As per the National Plan*

	Is a statutory charge against ships, based on the 'potential polluter pays' principle and is used to fund the National Plan for Maritime Environmental Emergencies. Funds are also used to meet clean-up costs, which cannot be attributed to a known polluter.
Prohibited Discharge	As per *Marine (Drug, Alcohol and Pollution Control) Act 1988* Section 34 a discharge into State waters of— (a) oil; or (b) an oily mixture; or (c) an undesirable substance;
Recovery	As per the Emergency Management Act section 3 The assisting of persons and communities affected by emergencies to achieve a proper and effective level of functioning.
Responsible Agency	*As per the National Plan* See Control Agency
Responsible Party	*As per the National Plan* Means the entity that has been identified as owning or having the legal responsibility for the vessel or facility that caused the incident.
Response Agency	Any agency with a role or responsibilities during an emergency response as defined in the State Emergency Management Plan (SEMP), whether the control agency or a support agency.
Section	*As per the National Plan* means the organisational level having responsibility for the key top-level functions of incident management: planning, public information, logistics and operations.
SOLAS	*As per the National Plan* Safety of Life at Sea – derived from the international convention for the Safety of Life at Sea.
State	*As per the National Plan* means, depending on context, one or more of the states or territories of Australia.
State Response Controller/ State Controller	*As per definitions in the Emergency Management Act 2013* section 37
State waters	As per *Marine (Drug, Alcohol and Pollution Control) Act 1988* section 2 • the territorial sea adjacent to the State; and • the sea on the landward side of the territorial sea adjacent to the State that is not within the limits of the State; and • waters within the limits of the State.
Support Agency	As per the National Plan Means an agency or company that provides essential services, personnel, material or advice in support of the Control Agency during the response to a maritime environmental emergency.
Terminal	As per the National Plan (see also oil terminal and chemical terminal).
Unit	As per the National Plan means a small cell of people working within one of the sections undertaking a designated set of activities.
Undesirable Substances	As per the *Pollution of Waters by Oils and Noxious Substances Act 1986* Part 2 (a) any solid ballast, rubbish, gravel, earth, stone or wreck; or (b) any dangerous, flammable, corrosive or offensive substance, whether solid, liquid or gaseous; or

	(c) any article or thing or any substance (whether solid, liquid or gaseous) which is capable of constituting a hazard to navigation or of preventing or hindering the proper use of State waters — but does not include oil or an oily mixture.
Vessel (and /or ship)	• As per the *Marine Safety Act 2010* section 3 - any kind of vessel that is used, or capable of being used, in navigation by water, however propelled or moved, and includes— (a) a barge, lighter, floating restaurant or other floating vessel; and (b) an air-cushion vehicle, or other similar craft, that is used in navigation by water; and (c) any aeroplane that is designed for and capable of being waterborne, for so long as that aeroplane is waterborne; and (d) a lifeboat; and (e) a thing being towed by a vessel; and (f) an off-shore industry mobile unit within the meaning of the Commonwealth *Navigation Act 2012*—but does not include an off-shore industry mobile unit that is not self-propelled. • has several meanings within Australian legislation and international conventions, but for the purpose of this Plan means a vessel of any type whatsoever operating in the maritime environment, and includes hydrofoil boats, air cushion vehicles, submersibles and floating craft of any type. • Throughout this document the term vessel is preferred. Ship, ship-owner and shipping are used where these make sense in context or arise from an official or formal source.

5.6 Appendix 6 - Acronyms

AIIMS	Australasian Inter-service Incident Management System
AMOSC	Australian Marine Oil Spill Centre
AMSA	Australian Maritime Safety Authority
AtoN	Aids to Navigation
CERA	Community Emergency Risk Assessment
CFA	Country Fire Authority (Victoria)
DEECA	Department Energy, Environment and Climate Action (Victoria)
DH	Department of Health (Victoria)
DTP	Department of Transport and Planning (Victoria)
EMC	Emergency Management Commissioner
EMCOP	Emergency Management Common Operation Picture
EMJPIC	Emergency Management Joint Public Information Committee
EMT	Emergency Management Team
EPA	Environment Protection Authority Victoria
ERR	Earth Resources Regulation
ERV	Emergency Recovery Victoria
ES&T	Environmental, Scientific and Technical
FRV	Fire Rescue Victoria
GED	General Environmental Duty
HNS	Hazardous and Noxious Substance
IC	Incident Controller
ICC	Incident Control Centre
IGA	Intergovernmental Agreement
IEMT	Incident Emergency Management Team
IMO	International Maritime Organisation
IMT	Incident Management Team
ISO container	International Standard Organisation container generally for storing liquids
JSOP	Joint Standard Operating Procedure
MCCU	Maritime Casualty Control Unit
MCO	Maritime Casualty Officer
MENSAR	The Maritime Emergencies (Non-Search and Rescue) Plan
MERC	Municipal Emergency Response Coordinator
MERCOM	Maritime Emergency Response Commander
MSV	Maritime Safety Victoria
National Plan	the National Plan for Maritime Environmental Emergencies, and all policy, guidance and advisory documents produced and published in support.
NEBA	Net Environmental Benefit Analysis (replaced by SIMA)
NEMO	National Emergency Maritime Operations
NOPSEMA	National Offshore Petroleum Safety and Environmental Management Authority
Non-SAR	Non-Search and Rescue
NSR	Non-Search and Rescue
NRST	National Response Support Team

NRT	National Response Team
OSCA	Oil Spill Control Agents
OPEP	Oil Pollution Emergency Plan
POLREP	Pollution notification Report
PortSEMP	Port Safety and Environment Management Plan
PV	Parks Victoria
RCT	Regional Control Team
REMT	Regional Emergency Management Team
REMPC	Regional Emergency Management Planning Committee
RERC	Regional Emergency Response Coordinator (VicPol)
RMERG	Regional Maritime Emergency Reference Group
RSA	Response Support Agency
SCC	State Control Centre
SCME	State Controller Maritime Emergencies
SCRC	State Crisis and Resilience Council
SCT	State Control Team
SDO	State Duty Officer
SEMT	State Emergency Management Team
SEMP	State Emergency Management Plan
SIMA	Spill Impact Mitigation Assessment
SITREP	Situation Report
SMEWG	State Maritime Emergencies (Non-Search and Rescue) Working Group
SPLO	Senior Police Liaison Officer
SRT	State Response Team
ST Vic	Safe Transport Victoria (formerly Transport Safety Victoria)
VTS	Vessel Traffic Service
WPS	Water Police Squad